DEPARTMENT OF THE AIR FORCE
HEADQUARTERS UNITED STATES AIR FORCE
WASHINGTON, DC

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27 October 2026

MEMORANDUM FOR DISTRIBUTION C
MAJCOMs/FLDCOMs/FOAs/DRUs

FROM: HQ USAF/JA
1420 Air Force Pentagon
Washington, DC 20330-1420

SUBJECT: Department of the Air Force Guidance Memorandum to Department of the Air Force Instruction (DAFI) 51-202, *Nonjudicial Punishment*

By Order of the Secretary of the Air Force, this Department of the Air Force Guidance Memorandum (DAFGM) immediately changes DAFI 51-202, *Nonjudicial Punishment.* Compliance with this Memorandum is mandatory. To the extent its directions are inconsistent with other Department of the Air Force publications, the information herein prevails, in accordance with Department of the Air Force Instruction (DAFI) 90-160, *Publications and Forms Management,* and Department of the Air Force Manual (DAFMAN) 90-161, *Publishing Processes and Procedures*.

This guidance is applicable to the entire Department of the Air Force (DAF), including uniformed members of the Regular Air Force, United States Space Force, Air Force Reserve and Air National Guard, except where noted otherwise, all DAF civilian employees and those with a contractual obligation to abide by the terms of DAF issuances.

This DAFGM implements the "case ready date" to aid in tracking and measuring metrics and milestones. Additional changes include administrative changes to paragraph references.

This Memorandum becomes void after one year has elapsed from the date of this Memorandum, or upon incorporation by interim change to, or rewrite of DAFI 51-202, whichever is earlier**.**

CHRISTOPHER A. EASON, Major General, USAF
The Judge Advocate General

Attachment:
Guidance Changes

DAFI 51-202_DAFGM2026-01

ATTACHMENT

Current guidance in DAFI 51-202, *Nonjudicial Punishment,* remains in effect with the following changes:

3.3.4.1. **(Changed)** For cases in which an investigation is conducted and a Report of Investigation (ROI) is published, the case ready date is defined as the date of publication for the ROI. This includes cases in which a DAF investigative agency (e.g., OSI, SFS/S2I, IG), command, or civilian authorities receive notification of an allegation that an offense has been committed with a potential subject of NJP identified, and which leads to an investigation with a published ROI. The fact that a case is under investigation, which will result in a published ROI, does not prohibit an NJP from being served prior to the ROI being published; in such cases, the case ready date will be the day before the offer date. (Note: For cases where disposition can be decided pre-close out of the ROI, legal offices should move forward in coordination with the relevant investigative agency and utilize the date that decision is made as the case ready date.)

3.3.4.3. **(Added)** For cases where the military is awaiting action or decision by a civilian agency, the case ready date is defined as the date on which the civilian agency formally transfers jurisdiction to the military.

3.3.4.4. **(Changed)** In all other cases, the case ready date will be the same as the date of discovery, as defined in paragraph 3.3.3.

6.4. **(Changed)** Copies. Copies of Article 15 documentation are reproduced from the signed original. The SJA ensures copies of all documents and attachments that will comprise the record of punishment, as set forth in paragraph 6.9, are provided to the member and to each level of command involved.

BY ORDER OF THE SECRETARY OF THE AIR FORCE

DEPARTMENT OF THE AIR FORCE INSTRUCTION 51-202

26 AUGUST 2026

Law

NONJUDICIAL PUNISHMENT

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

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This instruction implements Department of the Air Force Policy Directive (DAFPD) 51-2, *Military Justice and Other Criminal Proceedings.* Specifically, this instruction addresses Article 15 of the Uniform Code of Military Justice (UCMJ), Part V of the Manual for Courts-Martial (MCM). This publication applies to the Regular Air Force, the Air Force Reserve, the Air National Guard (ANG) (when in federal service under Title 10 United States Code (U.S.C.)), and the United States Space Force (USSF). Users of this instruction should familiarize themselves with the UCMJ, MCM, and Department of Defense (DoD) directives and instructions pertaining to military justice. This publication may not be supplemented without the prior, written approval of AF/JAJM, 1500 West Perimeter Road, Suite 1130, Joint Base Andrews, Maryland 20762; DSN 612-4820. This instruction requires the collection and or maintenance of information protected by the Privacy Act of 1974 authorized by Department of Defense Instruction (DoDI) 5400.11, *DoD Privacy and Civil Liberties Programs*. The applicable System of Records Notice (SORN), DoD 0006, *Military Justice and Civilian Criminal Case Records,* is available at **http://dpclo.defense.gov/Privacy/SORNs.aspx**. Refer recommended changes and questions about this publication to the office of primary responsibility (OPR) using the Department of the Air Force (DAF) Form 847, *Recommendation for Change of Product*; route DAF Forms 847 from the field through the appropriate chain of command. The authorities to waive wing/delta/unit level requirements in this publication are identified with a tier ("T-0, T-1, T-2, T-3") number following the compliance statement. See Department of the Air Force Manual (DAFMAN) 90-161, *Publishing Processes and Procedures*, Table A10.1, for a description of the authorities associated with the tier numbers. Submit requests for waivers through the chain of command to the appropriate tier waiver approval authority. All waivers of non-tiered compliance statements must

be submitted to AF/JAJM, the publication OPR. Commanders may not waive non-tiered compliance items in this instruction. See DAFMAN 90-161, paragraph 9.2.2. Ensure all records generated as a result of processes prescribed in this publication adhere to Air Force Instruction (AFI) 33-322*, Records Management and Information Governance Program*, and are disposed in accordance with the Air Force Records Disposition Schedule (RDS), which is located in the Air Force Records Information Management System.

SUMMARY OF CHANGES

This document has been substantially revised and needs to be completely reviewed. With the implementation of warrant officers, Executive Order 14103 creating the Office of Special Trial Counsel, recent criminal indexing updates, and numerous other changes, a full rewrite to incorporate these changes is necessary. Changes include (1) the inclusion of previous Guidance Memorandums, (2) the addition of a section on the Office of Special Trial Counsel and Commander Authority, (3) the incorporation of the U.S. Space Force, (4) additions of definitions to the Burden of Proof, Personally Identifiable Information, and the Statute of Limitation, (5) updates to the Criminal Indexing Requirements, and (6) updates to terminology, forms, and obsolete references.

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Chapter 1

OVERVIEW AND ROLES AND RESPONSIBILITIES

1.1. Overview.

1.1.1. Purpose. Nonjudicial Punishment (NJP) provides commanders with an essential and prompt means of maintaining good order and discipline. It is intended to promote positive behavior changes in service members without the stigma of a court-martial conviction. See MCM, Part V, paragraphs 1b, 1c, and 1e.

1.1.2. "Department of the Air Force" or "DAF" will be used when the Air Force and Space Force are referred to collectively.

1.1.3. This instruction implements requirements for the administration of NJP in the DAF. The primary source of direction and guidance on NJP is the MCM, Part V. It establishes requirements, rules, and procedures for imposing NJP on members.

1.2. Roles and Responsibilities.

1.2.1. Commanders shall:

1.2.1.1. Report NJP actions on all officers to the Secretary of the Air Force (SecAF), Inspector General (IG), Senior Official Inquiries Directorate (SAF/IGS) (for general officers) or local Inspector General (for all other officers) when initiated and when final action is complete, in accordance with DAFI 90-301, *Inspector General Complaints Resolution*.

1.2.1.2. Prior to initiating NJP against an Air Force Reserve member assigned or attached to the commander's unit, coordinate with the member's Air Force Reserve unit commander. **(T-2).** For Guardians who are Space Force Active Status not on sustained duty (SFAS-NSD), but who are assigned or attached to another organization, coordinate with their home station commander prior to initiating NJP. **(T-2)**

1.2.1.3. Coordinate with the administrative control (ADCON) commander to whom the Air National Guard (ANG) member is assigned when in Title 10 status or the 201st Mission Support Squadron (MSS) commander prior to initiating NJP action against an ANG member assigned or attached to the commander's unit, whichever is applicable. **(T-3).** See **paragraph 2.12**.

1.2.1.4. Consult with the servicing staff judge advocate (SJA), or designee, prior to initiating and administering NJP actions against members in the commander's unit. **(T-3).**

1.2.1.5. Ensure the impartial and timely administration of military justice by offering NJP for appropriate offenses as soon as possible after facts indicate such offenses have been committed and have become known by the member's commander.

1.2.2. GCMCA shall supervise all NJPs within the convening authority's command.

1.2.3. The GCMCA SJA, or designee, shall:

1.2.3.1. Conduct supervisory SJA review of all NJP actions completed by servicing legal office within the command.

1.2.3.2. Forward the original NJP for filing in the master personnel record group.

1.2.4. The servicing SJA, or designee, shall:

1.2.4.1. Advise commanders on all legal aspects of NJP, both substantive and procedural.

1.2.4.2. Conduct a legal sufficiency review on NJP after the conclusion of appellate action and member acknowledgment. See **paragraph 4.12**.

1.2.4.3. Forward a copy of required final DAF Forms (DAF Form 3070A – 3070D, *Record of Nonjudicial Punishment Proceedings*; DAF Form 366, *Record of Proceedings of Vacation of Suspended Nonjudicial Punishment*; and DAF Form 3212, *Record of Supplementary Action Under Article 15, UCMJ*), to the local Office of Special Investigations (OSI) detachment, local Security Forces Squadron Investigations Section (SFS/S2I) (or other military law enforcement agency, if applicable), and Department of the Air Force Criminal Justice Information Center (AFCJIC), in accordance with **Section 6B** of this instruction.

1.2.5. The Military Personnel Flight (MPF) shall take appropriate personnel actions required upon receipt of NJP records.

1.2.6. The Accounting and Finance Office (AFO) shall take appropriate finance actions upon receipt of NJP records.

1.2.7. OSI, Security Forces, and AFCJIC shall, upon receipt of completed DAF Forms 3070, 366 and 3212, update criminal history record and disposition data in accordance with 18 U.S.C. § 922, *Unlawful Acts*; DoDI 5505.11, *Fingerprint Reporting Requirements*; DoDI 5505.14, *DNA Collection and Submission Requirements for Law Enforcement;* and AFMAN 71-102, *Air Force Criminal Indexing*. **(T-0).**

1.3. Forms. Use the following forms to record NJP actions:

1.3.1. DAF Form 3070, *Record of Nonjudicial Punishment Proceedings*. Although referenced generally as "DAF Form 3070," this form is subdivided based on grade and status. Use of DAF Forms 3070A, 3070B, and 3070C is based on the grade of the member at the time NJP is initiated. For example, if a member is an E-6 at initiation of NJP and is found to have committed one or more offenses as listed on the DAF Form 3070B, the DAF Form 3070B must be completed, to include the senior noncommissioned officer (SNCO) selection record decision, even if the member is reduced below the grade of E-6 as a result of the NJP. DAF Form 3070D are specific to members of the ANG in the grade of E-6 through E-9. The Air Force Reserve utilizes DAF Forms 3070A, 3070B, and 3070C for NJP proceedings but does not utilize the selection records process for NCOs.

1.3.1.1. DAF Form 3070A, *Record of Nonjudicial Punishment Proceedings (E-1 through E-5)*. This form is also for use by the ANG for personnel in the ranks of AB through SSgt.

1.3.1.2. DAF Form 3070B, *Record of Nonjudicial Punishment Proceedings (E-6 through E-9)*.

1.3.1.3. DAF Form 3070C, *Record of Nonjudicial Punishment Proceedings (Officers)*. This form is also used for Warrant Officers.

1.3.1.4. DAF Form 3070D, *Record of Nonjudicial Punishment Proceedings (E-6 through E-9) – ANG Only*.

1.3.2. DAF Form 366, *Record of Proceedings of Vacation of Suspended Nonjudicial Punishment*.

1.3.3. DAF Form 3212, *Record of Supplementary Action under Article 15, UCMJ*.

Chapter 2

AUTHORITIES, LIMITATIONS ON IMPOSITION OF NONJUDICIAL PUNISHMENT, AND JURISDICTION

Section 2A—Authority to Impose Nonjudicial Punishment

2.1. Commander's Authority to Impose NJP. The following personnel are authorized to impose NJP:

2.1.1. A commander of an Air Force unit.

2.1.2. A commander of a Space Force unit.

2.1.3. Commander, Air Force Forces, which is an officer designated from the United States Air Force who serves as the commander of all United States Air Force forces assigned and attached to the United States Air Force component in a joint or combined operation. See Air Force Doctrine Publication 3-0.1, *Command and Control*.

2.1.4. Commander, Space Force Forces, which is an officer designated from the United States Space Force who serves as the commander of all United States Space Force forces assigned and attached to the United States Space Force component in a joint or combined operation.

2.1.5. Commanders of detachments, headquarters, squadron sections and equivalents, and United States Air Force and United States Space Force element sections, if properly in command. See MCM, Part V, paragraph 2; DAFI 38-101, *Manpower and Organization*; and DAFI 51-509, *Appointment to and Assumption of Command*.

2.1.6. The Senior Air Force Officer (SAFO) in the headquarters staff organization of a unified command, subordinate unified command, specified command, joint task force, combined command, or combined task force, with respect to Air Force members in the organization. The SAFO in the Air Force element of an activity outside the DAF, as defined in **Attachment 1**, with respect to Air Force members in the activity. This applies even if the Air Force element has not been formally designated as a unit and the SAFO has not been formally appointed to command. See DAFI 51-509.

2.1.6.1. The SAFO must be an officer otherwise eligible to command in accordance with DAFI 51-509.

2.1.6.2. SAFOs may delegate their authority under Article 15, UCMJ, to the next senior DAF officer or another principal assistant who is generally equivalent to a deputy commander.

2.1.7. The Senior Space Force Officer (SSFO) in the headquarters staff organization of a unified command, subordinate unified command, specified command, joint task force, combined command, or combined task force, with respect to Space Force members in the organization. The SSFO in the Space Force element of an activity outside the DAF, as defined in **Attachment 1**, with respect to Space Force members in that activity. This applies even if the Space Force element has not been formally designated as a unit and the SSFO has not been formally appointed to command. See DAFI 51-509.

2.1.7.1. The SSFO must be an officer otherwise eligible to command in accordance with DAFI 51-509.

2.1.7.2. SSFOs may delegate their authority under Article 15, UCMJ, to the next senior DAF officer or another principal assistant who is generally equivalent to a deputy commander.

2.1.8. The commander of an Air Force element, as appointed by superior competent authority or lawfully assumed in accordance with DAFI 51-509. This includes the Air Force element of a headquarters unit in a joint or combined command or task force, as well as the Air Force element of an activity outside the DAF.

2.1.9. The commander of a Space Force element, as appointed by superior competent authority or lawfully assumed in accordance with DAFI 51-509. This includes the Space Force element of a headquarters unit in a joint or combined command or task force, as well as the Space Force element of an activity outside the DAF.

2.1.10. The commander of Air Force District of Washington (AFDW/CC), and the commanders of subordinate units when designated by AFDW/CC, for Air Force members assigned to an Air Force element of an activity outside the DAF. This NJP authority is held concurrently with element commanders and SAFOs of activities outside the DAF.

2.1.11. The commander of Combat Forces Command (CFC/CC), and the commanders of subordinate units when designated by CFC/CC, for Space Force members assigned to a Space Force element of an activity outside the DAF. This NJP authority is held concurrently with element commanders and SSFOs of activities outside the DAF.

2.1.12. The superintendent of the United States Air Force Academy (USAFA) and the commandant of a school that is designated as an Air Force unit.

2.1.13. The commander of a host command, and the commanders of subordinate units when designated by the host commander, providing support to a tenant organization pursuant to AFI 25-201, *Intra-Service, Intra-Agency, and Inter-Agency Support Agreements Procedures*.

2.1.14. Joint force commanders of joint activities established under the criteria of Joint Publication 1, *Doctrine for the Armed Forces of the United States*.

2.1.15. Multiservice U.S. Armed Forces commanders in combined commands, combined task forces, and activities outside the DAF, as defined in **Attachment 1**, to whose command DAF members are assigned or attached.

2.2. NJP Authority in a Joint Force. The joint force commander has authority to impose NJP on DAF members assigned or attached to the command unless such authority is withheld by a superior joint commander. See Joint Publication 1. DAF members are "assigned or attached to the command" of a joint force commander if they are assigned or attached to the joint staff organization or to a unit which is assigned or attached to the joint force.

2.2.1. Joint force commanders should use this instruction when imposing NJP on DAF members**.** See Joint Publication 1. The appropriate DAF commander should normally handle matters that involve only the DAF and occur within the military jurisdiction of the DAF.

2.2.2. If NJP is imposed on a DAF member by a commander of a different service, the decisions as to collateral administrative actions (e.g., entry into UIF or selection record) will be made by the SAFO for Air Force members, SSFO for Space Force members, or commander of the applicable Air Force or Space Force element in the Joint Command. If neither is available nor senior to the commander who imposed NJP, the decision is made by a GCMCA of the DAF host command who is senior to the commander who imposed punishment, or by a GCMCA senior to the commander who imposed punishment as designated by the respective DAF host command's major command (MAJCOM) or field command (FLDCOM) commander.

2.3. Procedures for Imposing NJP in a Joint Force. If the joint force commander decides to initiate NJP against a DAF member, the joint force commander should coordinate with the appropriate DAF commander before taking action.

2.3.1. The appropriate DAF commander immediately notifies the servicing SJA. See AFI 25-201 and reference the appropriate support or interagency agreement to identify the proper servicing SJA. The servicing SJA:

2.3.1.1. Coordinates with the SJA assigned to the joint force commander.

2.3.1.2. Advises on the application of DAF instructions in the administration and processing of NJP actions and assists the joint force SJA in ensuring the NJP action is properly completed by the joint force commander.

2.3.1.3. Enters the NJP proceedings into the Disciplinary Case Management System (DCMS-AMJAMS) and ensures required personnel and finance actions are taken. See paragraphs **4.8** and **4.9** to identify the DAF officer responsible for deciding selection record and UIF actions.

2.3.2. If a DAF judge advocate is assigned to the joint force commander, he or she may provide advice to the joint force SJA in lieu of the host command's servicing SJA. The servicing DAF SJA shall be notified of the occasion and nature of the advice and action and shall remain responsible for the required DCMS-AMJAMS entries, personnel records and finance actions.

2.3.3. If the joint force commander determines NJP authority over a DAF member should be left to the discretion of DAF authorities, the appropriate DAF commander, as identified in **paragraph 2.1**, may take action. NJPs shall be processed through the servicing DAF SJA for the host command.

2.3.4. Commander and member must both be in Title 10 status for action to be taken (e.g., if member is ANG or Air Force Reserve, or SFAS-NSD, he or she must be in Title 10 status or must be recalled to Title 10 status before NJP may be initiated). **(T-0).**

2.4. Procedures for Multiservice Commanders. The multiservice commander, when imposing NJP on a DAF member, follows this instruction, including the guidance applicable to joint force commanders in paragraphs **2.2** and **2.3**.

2.5. Delegation of Authority. Commanders who are general officers or GCMCAs may delegate their powers under Article 15, UCMJ, to a principal assistant, provided that principal assistant is a military officer. See DAFPD 51-2. The principal assistant then assumes the commander's authority to impose NJP on members of the command who are subordinate to the principal assistant. The principal assistant does not assume the commander's rank for punishment purposes, but acts on virtue of the principal assistant's own rank and the commander's delegation of authority. Delegation of such authority must be in writing or incorporated in a permanent directive and should be addressed to the principal assistant by duty title, rather than by name, except as described in paragraphs **2.1.6.2** and **2.1.7.2**. The original written delegation or directive shall be filed in the office of the SJA servicing the commander concerned. A delegation made by duty title continues in effect when a new principal assistant occupies the position or when command changes to a new commander, unless or until expressly rescinded. A commander delegating NJP punishment authority also retains the authority to administer NJP in the commander's own right.

Section 2B—Limitations on Commander's Authority

2.6. Limitations on Commander's Authority. A commander may only impose NJP on members of his or her command.

2.6.1. "Members of his or her command" include those assigned to the element or organization commanded, or members on temporary duty (TDY) with, or otherwise attached to, the element or organization. A commander may exercise NJP authority on a member not on TDY orders if the commander exercises the usual responsibilities of command over the member. A TDY commander has concurrent authority with the commander of the member's element or organization of permanent assignment. In these cases, the commander should confer whenever possible with the member's parent organization commander about which commander should initiate action. If the member is in the Air Force Reserve or SFAS-NSD, prior coordination with the member's parent organization commander is required. **(T-2).** If the member is in the ANG, prior coordination with the member's assigned Title 10 ADCON commander is required. **(T-3).** In order for a commander to initiate NJP on a member of the Air Force Reserve or ANG, the commander and member must both be in Title 10 status.

2.6.2. A commander will not impose NJP on a member after that member has been transferred from the command. If NJP was initiated but punishment was not imposed prior to the transfer, the initiating commander may forward the record of proceeding to the gaining commander for disposition. If a member transfers after punishment has been imposed but before the action is complete, the action (including adjudication of any appeal) will be completed by the imposing commander's chain of command. In the event either of these scenarios should occur, refer to **paragraph 3.9** to determine what notification, if any, should be provided to the member receiving NJP.

2.6.3. **Statute of limitations.** Except as prescribed in Article 43(c) and (d), UCMJ, a commander shall not impose NJP on a member for an offense committed more than two years before the date of imposition of NJP. See **paragraph 3.12.4.**, Article 43(b)(3); *United States v. Moore,* 32 M.J. 170 (CMA 1991). This limitation may be knowingly and voluntarily waived by the member.

2.7. Commander as Victim or Witness in Commander's Personal Capacity.

2.7.1. Commander as Victim. If a commander is the victim of the crime for which the NJP is being contemplated in the commander's personal capacity (e.g., victim of assault or larceny) as opposed to official capacity (e.g., violation of commander's order), that commander should forward the report of the incident to the next higher commander for review and appropriate action.

2.7.2. Commander as Witness. A commander who has witnessed misconduct or events related to misconduct is not barred from imposing NJP for the witnessed misconduct. In these instances, a commander should document his or her observations in a memorandum for record (MFR) and include it as part of the evidence. If the commander's involvement precludes fair and impartial judgment, that commander should forward the report of the incident to the next higher commander for review and appropriate action.

2.8. Withholding Authority. A commander may withhold from any subordinate commander all or part of the authority, including the authority to impose NJP for specific types of offenses, that the subordinate would otherwise have under the UCMJ, MCM, or this instruction. When authority is withheld, such action shall be in a clearly defined writing or permanent directive. File the original of the letter or directive in the office of the SJA servicing the commander withholding the authority. File a copy in the office of the SJA servicing the commander whose authority has been withheld. Any such withholding remains in effect when a new commander assumes either command, until and unless expressly revoked by the superior commander. Any such action should be addressed by duty title and not by name.

2.9. Cases Involving Offenses Covered by OSTC. In accordance with Article 24a, UCMJ, the Office of Special Trial Counsel (OSTC) retains exclusive authority over covered offenses, as enumerated in Article 1(17), UCMJ, committed on or after 28 December 2023. OSTC may also exercise authority over known and related offenses, as defined in R.C.M. 303A, committed on or after 28 December 2023. Additionally, OSTC may exercise discretionary authority over covered offenses, known, or related offenses committed before 28 December 2023.

2.9.1. A commander may impose NJP for covered offenses as defined under Article 1(17), UCMJ, once those offenses have been deferred to the commander by a special trial counsel.

2.9.1.1. Should a member demand trial by court-martial in lieu of NJP for covered offenses that have been deferred, a commander may recommend that OSTC reconsider its decision to not prefer a covered offense.

2.9.1.2. Under Article 24(c)(5), UCMJ, a commander may not refer charges and specifications for a covered offense for trial by special or general court-martial.

2.9.2. If OSTC defers related or known offenses, a commander may take any disposition action on those offenses, to include NJP and preferral of charges.

2.10. Cases Involving State or Foreign Prosecution Interest. Only the SecAF may approve initiation of NJP action against a member who is pending trial or has been previously tried by a federal, state, or foreign court for substantially the same act(s) or transaction(s), regardless of the outcome.

2.10.1. A member may be considered to be "pending trial" when state or foreign authorities have expressed an intent to try the member, even if formal charges have not yet been brought (e.g., upon arrest of the member or a representation by civilian authorities that they intend to pursue the case).

2.10.2. A member is deemed "tried" if jeopardy has attached. Follow the applicable state or foreign law to determine when this occurs. At a minimum, jeopardy attaches when the jury is impaneled and sworn, or when the first witness testifies in a judge-alone trial. See *Crist v. Bretz*, 437 U.S. 28 (1978).

2.10.3. A member is not deemed "tried" if the prosecution is deferred, held in abeyance, or otherwise diverted from normal channels pending completion of conditions as an alternative to prosecution, without an initial determination of guilt. If deferral, abeyance, or diversion is conditional and the member remains subject to prosecution if a condition is violated, UCMJ action should not be taken until after the deferral, abeyance, or diversion is completed.

2.10.4. A member is not deemed "tried" in situations where jeopardy attached without resolution of the case, if further prosecutorial action is authorized under state or foreign law (for example, in the case of a mistrial).

2.10.5. If the state or foreign proceedings end without jeopardy attaching or if the DAF receives clear indication in writing from an authorized state or foreign government representative that the state or foreign proceedings will not continue pending military authorities taking UCMJ action, the principle of comity is satisfied, and the DAF may proceed with NJP.

Section 2C—Jurisdiction

2.11. Host Command Jurisdiction. All members of a tenant unit, Air Force element, or Space Force element, whether designated a unit or not, are attached to the host command and its appropriate subordinate and higher commands for the exercise of authority under Article 15, UCMJ. However, commanders of tenant units, and other Air Force or Space Force element officers authorized to impose NJP pursuant to this instruction, retain concurrent authority to take such action.

2.11.1. Any appeal is made to the next superior authority in the command channel of the officer who imposes punishment or to the appeal authority otherwise designated by AF/JAJM. See DAFPD 51-2.

2.11.2. Regardless of who imposes punishment or acts on the appeal, the action is administratively processed through the host command's SJA and reviewed in accordance with **paragraph 1.2.3**.

2.12. Jurisdiction over ANG Members. Jurisdiction attaches when ANG members are in Title 10 status. However, because ANG Title 10 status cannot ordinarily be administratively extended for investigations into UCMJ violations or to complete actions to address UCMJ violations, the supporting Regular Air Force legal office contacts the legal office supporting the ANG Readiness Center, the Directorate Judge Advocate-ANG, within the National Guard Bureau Office of the General Counsel (NGB-GC), to discuss the timing of exercising jurisdiction and options for maintaining jurisdiction. The process for obtaining jurisdiction over ANG members varies based on the status of the member at the time the commander intends to initiate NJP.

2.12.1. ANG Members in Title 10 Status. When an ANG member commits misconduct while in Title 10 status and attached to a Regular Air Force or Space Force unit, the commander of that unit ordinarily initiates NJP if otherwise authorized to initiate NJP over that member. The commander coordinates any action with NGB-GC and 201 MSS. **(T-3).**

2.12.2. If an ANG member's Title 10 orders have expired and the ANG member has reverted to Title 32 ANG status before UCMJ action commences, the member must be recalled to Title 10 status under 10 U.S.C. § 802(d), *Persons subject to this chapter*. **(T-0).**

2.12.2.1. The servicing legal office of the attached commander with whom the ANG member was performing in Title 10 status at the time of the misconduct contacts NGB-GC, who coordinates with 201 MSS.

2.12.2.2. NGB-GC, in coordination with 201 MSS, identifies the Regular Air Force or Space Force installation with a servicing legal office that is geographically closest to the member's Title 32 home ANG unit.

2.12.2.3. If, after consulting NGB-GC and the servicing legal office, a decision to initiate NJP is made by the 201 MSS, the servicing legal office identified in **paragraph 2.11.2.2** routes a request to recall the member to Title 10 status to one of the following:

2.12.2.3.1. A GCMCA for the host command of the nearest Regular Air Force or Space Force installation;

2.12.2.3.2. A GCMCA for the Regular Air Force or Space Force unit to which the member was attached for duty (supported commander);

2.12.2.3.3. A GCMCA for the Regular Air Force or Space Force unit to which the member was attached for training; or

2.12.2.3.4. Any GCMCA pursuant to an agreement with or a request by 201 MSS/CC.

2.12.3. ANG Recall Process.

2.12.3.1. The GCMCA evaluates recall decisions using the preponderance of the evidence standard;

2.12.3.2. The GCMCA authorizes the recall to Title 10 status for UCMJ action against the member by signing a memorandum prepared by the GCMCA legal office;

2.12.3.3. The Air Force Director of Manpower, Organization and Resources (AF/A1M) provides the man-days for the orders under 10 U.S.C. § 802(d);

2.12.3.4. The member's home station creates the Title 10 order(s);

2.12.3.5. If necessary, the GCMCA who recalls the member to Title 10 status funds travel-related entitlements in accordance with the Joint Travel Regulations. See *Joint Federal Travel Regulations*.

2.12.3.6. The member is ordered to Title 10 status and scheduled to appear at the home ANG unit for NJP processing and remains in Title 10 status until the conclusion of that process.

2.12.3.7. Requirement that Commander be in Title 10 status. The commander initiating the NJP must be in Title 10 status only on days while taking action during the NJP process. This includes days when: the NJP is offered to the member; the member makes a personal presentation; the commander makes decisions regarding guilt or punishment; the commander makes a decision upon appeal by the member; the commander makes a decision regarding the member's selection record; and the commander makes a decision as to whether the case should be forwarded to an appellate or other superior authority. The commander is not otherwise required to remain in Title 10 status when not taking action during the NJP process. See **paragraph 3.12**.

2.12.3.8. Execution of Punishment. Members must be in Title 10 status in order for punishment to be executed. In the event an ANG member's Title 10 orders have expired and the member has reverted to Title 32 status before execution of punishment, the punishment does not take effect until the member is returned to Title 10 status.

2.13. Jurisdiction over Air Force Reserve Members. Jurisdiction attaches when Air Force Reserve members are in Title 10 status.

2.13.1. When an Air Force Reserve member commits misconduct while in Title 10 status and is assigned or attached to a Regular Air Force or Space Force unit, the commander of that unit on G-series orders initiates the NJP. The commander coordinates any action with the member's Air Force Reserve chain of command including the applicable SJA. **(T-3).**

2.13.2. If an Air Force Reserve member's Title 10 status terminates before UCMJ action commences, the member must be recalled to Title 10 status under 10 U.S.C. § 802(d) or the commander initiating the NJP must wait until the member is otherwise in Title 10 status. **(T-0).**

2.13.2.1. The Air Force Reserve member must be in Title 10 status to receive service of the NJP and to take any action on the DAF Form 3070 requiring the member's signature, election, or acknowledgment.

2.13.2.2. The member is not required to be in Title 10 status between actions requiring a member's signature, election, or acknowledgement.

2.13.3. Subject to the coordination requirement of **paragraph 2.13.1**, the following individuals may recall an Air Force Reserve member to Title 10 status for purposes of administering NJP:

2.13.3.1. A GCMCA for the Regular Air Force or Space Force unit to which the member is assigned or attached for training purposes;

2.13.3.2. A GCMCA for the Regular Air Force or Space Force unit in which the member performed federal service and/or was in Title 10 status when the offense occurred;

2.13.3.3. A GCMCA for the Regular Air Force or Space Force host unit, as designated in the applicable host-tenant support agreement, if the member is assigned to an Air Force Reserve unit for training purposes or was attached to such a unit when the offense occurred;

2.13.3.4. AFRC/CC, 4 AF/CC, 10 AF/CC, or 22 AF/CC for members assigned or attached to their respective commands; or

2.13.3.5. A GCMCA for the Regular Air Force or Space Force host command.

2.14. Jurisdiction over SFAS-NSD Members. Jurisdiction attaches when SFAS-NSD members are on active duty or inactive duty for training pursuant to 10 U.S.C. § 20104 or 10 U.S.C. § 20196.

2.14.1. When a SFAS-NSD member commits misconduct while on active duty or inactive duty for training and is assigned or attached to a Regular Air Force or Space Force unit, the commander of that unit on G-series orders initiates NJP. The commander coordinates any action with the member's Space Force chain of command, including the applicable SJA. **(T-2)**

2.14.2. If a SFAS-NSD member's active duty terminates before UCMJ action commences, the member must be recalled to active duty under 10 U.S.C. § 20106 or the commander initiating the NJP must wait until the member is otherwise in active status. **(T-0).**

2.14.3. Subject to the coordination requirement of **paragraph 2.14.1**, the following individuals may recall a SFAS-NSD member to active-duty status for purposes of administering NJP:

2.14.3.1. A GCMCA for the Regular Air Force or Space Force unit to which the member is assigned or attached to for training purposes;

2.14.3.2. A GCMCA for the Regular Air Force or Space Force unit in which the SFAS-NSD member performed federal service and/or was in active duty or inactive duty for training status when the offense occurred;

2.14.3.3. A GCMCA for the Regular Air Force or Space Force host unit, as designated in the applicable host-tenant support agreement, if the SFAS-NSD member was assigned to a tenant unit for training purposes or was attached to such a unit when the offense occurred;

2.14.3.4. FLDCOM CCs for SFAS-NSD members assigned or attached to their respective commands; or

2.14.3.5. A GCMCA for the Regular Air Force or Space Force host command.

2.15. Requirement that Commander be in Title 10 Status. The commander initiating the NJP must be in Title 10 status only on days while taking action during the NJP process. This includes days when: the NJP is offered to the member; the member makes a personal presentation; the commander makes decisions regarding guilt or punishment; the commander makes a decision upon appeal by the member; the commander makes a decision regarding the member's selection record; and the commander makes a decision as to whether the case should be forwarded to an appellate or other superior authority. The commander is not otherwise required to remain in Title 10 status when not taking action during the NJP process. See **paragraph 3.12**.

2.16. Jurisdiction Over Certain Air Force Personnel. See DAFI 51-201 for jurisdictional information for USAFA cadets, Air Force judge advocates assigned to Headquarters Air Force (AF/JA) and subordinate directorates, and military judges.

2.17. Exceptions to Support Agreements. When a support agreement differing from the construct outlined in this instruction is necessary or desirable, the contents and conditions of the support agreement must be documented at the GCMCA level or higher and coordinated with AF/JAJM.

Chapter 3

PROCEDURES FOR INITIATING AND IMPOSING NONJUDICIAL PUNISHMENT

Section 3A—Responsibilities of the Initiating Commander

3.1. General Responsibilities. A commander who initiates NJP action and imposes punishment acts on the basis of information the commander determines relevant. The commander's action must be temperate, just, and conducive to good order and discipline.

3.2. Notice of Recoupment of Benefits. Concurrent with initiation of the NJP action, the initiating commander must provide written notice to a member who has received educational assistance, special pay, or bonuses concerning the member's obligation to reimburse the DAF if the member is discharged or involuntarily separated for misconduct. **(T-0).** The statement of understanding regarding recoupment is inserted and included on the DAF Form 3070. The member's initial signature on the DAF Form 3070 constitutes acknowledgement. Noncompliance with this provision shall not affect the legal sufficiency of the NJP action.

3.3. Timeliness of Actions. The impartial and timely administration of military justice helps maintain good order and discipline. NJP should be offered for appropriate offenses as soon as possible after facts that indicate such offenses have been committed become known by the member's commander.

3.3.1. Milestones. SJAs, chiefs of military justice, and non-commissioned officers in charge (NCOICs) of military justice should regularly analyze DCMS-AMJAMS data as to each segment of NJP processing to determine specific areas for improvement to maximize effectiveness and efficiency. Failure to meet these milestones does not preclude a commander from initiating NJP proceedings.

3.3.2. To assist legal offices with analyzing this data and expediting the administration of justice, the following milestones have been established:

3.3.2.1. Commanders should offer NJP within 21 calendar days of the case ready date as defined in **paragraph 3.3.4**.

3.3.2.2. Punishment should be served on the member within nine calendar days of offer of NJP.

3.3.2.3. The servicing SJA legal review should be completed within nine calendar days of the service of punishment.

3.3.2.4. At least 80% of all NJP actions should be completed (case ready date through servicing SJA legal review) within 39 days.

3.3.3. The date of discovery of the offense is defined as the initial date when the legal office, commander, supervisor, or first sergeant, whichever is first in time, becomes aware of an allegation that an offense has been committed and a potential subject of NJP has been identified.

3.3.4. The case ready date of the offense is defined as follows:

3.3.4.1. For cases in which an investigation is conducted and a Report of Investigation (ROI) is published, the case ready date is defined as the date of publication for the ROI. This includes cases in which a DAF investigative agency (e.g., OSI, SFS/S2I, IG), command, or civilian authorities receive notification of an allegation that an offense has been committed with a potential subject of NJP identified, and which leads to an investigation with a published ROI. The fact that a case is under investigation, which will result in a published ROI, does not prohibit an NJP from being served prior to the ROI being published; in such cases, the case ready date will be the day before the offer date.

3.3.4.2. In cases involving offenses covered by OSTC, including covered, known, or related offenses, the case ready date is defined as the date on which OSTC defers the offense(s) to command.

3.3.4.3. In all other cases, the case ready date will be the same as the date of discovery, as defined in **paragraph 3.3.3**.

3.4. Standard of Proof. The burden of proof to be utilized for imposition of NJP, to include adjudication of any appeal, shall be a preponderance of the evidence. This standard is more rigorous than a "probable cause" standard of proof used by law enforcement to obtain a warrant but a lower standard of proof than the "beyond a reasonable doubt" standard used at a court-martial. See MCM, Part V, paragraph 1h.

3.5. Providing Evidence to the Member and Defense Counsel.

3.5.1. After a commander serves the DAF Form 3070 on a member, that member and the member's defense counsel have a right to examine the evidence, except as noted in paragraphs **3.5.2** and **3.5.3**. The evidence includes all evidence the commander intends to rely upon in determining whether the member committed the alleged offense(s), and if applicable, regarding whether to impose punishment. This includes a summary of any verbal statement provided to the imposing commander by a victim or witness. **Note:** The servicing legal office must ensure any victim is aware that a summary of comments made to the commander imposing NJP will be provided to the member. **(T-0).**

3.5.1.1. If, at any time during NJP proceedings, new evidence which was not presented by the member but will be considered by the imposing commander or appellate authority, the member must be provided said evidence and given three duty days to respond to the new evidence. The member may waive this period if desired.

3.5.2. Members are not entitled to matters that are privileged, classified, or otherwise restricted by law, regulation, or instruction, even if relied upon by the commander. Upon request, member's defense counsel may be granted access to review the evidence if they possess the appropriate security clearance. Member's defense counsel may be provided access to directly review restricted evidence or an unclassified summary of the relevant information.

3.5.3. Providing Evidence to the Member. Legal offices must redact all personally identifiable information (PII) and Privacy Act information of individuals other than the member in the evidence prior to releasing matters to the member. **(T-0).**

3.5.4. Providing Evidence to Defense Counsel. Legal offices must provide defense counsel with an unredacted copy of relevant and necessary information in accordance with PII and the Privacy Act. DoD 5400.11-R. Department of Defense Privacy Program, **para C4.2.1**. While names and contact information of individuals, to include witnesses and victims, are PII, they are covered by, and may be releasable under, the Privacy Act. In rare circumstances, other PII that is relevant to the specification at issue may be provided, such as a birth date for an offense involving a minor or Social Security number for financial or identity crimes; in those circumstances, extra care should be taken to safeguard sensitive information. Release of this type of information is done under the Privacy Act's Exemption 1, Need to Know (5 U.S.C. § 552a(k)(1)). When Privacy Act material or PII is not redacted in material provided to the defense counsel, the defense counsel must take appropriate steps to guard against improper release of this information. **(T-0).**

Section 3B—Initiating Nonjudicial Punishment

3.6. Initial Considerations.

3.6.1. After making a preliminary inquiry, the commander consults with the servicing SJA or designee to determine whether NJP is appropriate and, if so, whether the commander can initiate proceedings personally, or whether the commander should or must refer the matter to a superior commander for action. Such referral is appropriate when the commander cannot impose an appropriate punishment because of the member's grade, or where authority has been withheld. See **Table 3.1**., **Table 3.2**, and **paragraph 2.8**.

3.6.2. When initiation of NJP action is under consideration, the member's personal data is normally available to the legal office through DCMS-AMJAMS. The member's personal data is also available by requesting a DCMS-AMJAMS report on individual personnel (RIP) from the member's servicing MPF. Do not delay initiation of NJP action to await receipt of a DCMS-AMJAMS RIP; however, commanders should be aware of any imminent expiration of term of service (ETS) or Title 10 orders.

3.7. Description of Offense. The SJA or designee should advise the commander how to properly allege each offense to state a violation of the UCMJ, consistent with available facts and evidence. Follow the form of specifications in MCM, Part IV. The legal office shall provide the language describing each offense on the DAF Form 3070, except where impracticable. **(T-3).** The NJP action remains valid even if the specification fails to include all the elements of an offense, provided that the member is reasonably informed of the nature of the alleged misconduct.

3.8. Notifying the Member.

3.8.1. A commander initiating an NJP proceeding completes the offer portion of the DAF Form 3070, signs and dates the form, and causes the member to be notified and advised of his or her rights using the DAF Form 3070. See MCM, Part V. The initiating commander should serve the offer of NJP when practicable. If service by the initiating commander is not practicable, a subordinate of the initiating commander senior in rank to the member receiving

NJP may be designated to serve the offer of NJP. The commander or subordinate annotates the date and time of service and signs in the appropriate location on the DAF Form 3070 as the person serving the member. Regardless of who serves the member, provide the member with a copy of all pages of the DAF Form 3070, any attachments, and the evidence discussed in **paragraph 3.5**.

3.8.2. If a commander refers the matter to a superior commander, the superior commander should normally initiate the NJP action and provide the notification. Where it is not practicable for the member to appear personally before the superior commander, the subordinate commander may initiate the NJP proceeding by initialing the appropriate block in the offer portion of the DAF Form 3070. When doing so, the subordinate commander notifies the member that NJP proceedings before a superior commander are being recommended (including the identity of the superior commander) and advises the member of his or her rights.

3.8.3. A commander who initially recommended that NJP proceedings be referred to a superior commander may dispose of the case personally if the DAF Form 3070 has not been forwarded to the superior commander. If the commander does not intend to personally pursue the matter as an NJP action, the commander withdraws the DAF Form 3070 by marking the appropriate box on the DAF Form 3070 and providing it to the servicing SJA so termination of NJP proceedings can be recorded in DCMS-AMJAMS. If the member has accepted the NJP and the commander intends to personally pursue the matter as an NJP action, the commander has two options. The commander may notify the member by memorandum that he or she intends to decide whether to impose punishment under the pending NJP action instead of the superior commander, giving the member a new opportunity (three duty days) to accept NJP proceedings or demand trial by court-martial. Attach the memorandum to the DAF Form 3070. Alternatively, the commander may withdraw the existing action and initiate a new action on a new DAF Form 3070.

3.9. Changing Commanders before Nonjudicial Punishment Proceedings are Complete. A member must always be informed of the identity of the commander who will make the findings and punishment decisions before a decision is required as to whether to accept NJP proceedings or demand court-martial. **(T-0).**

3.9.1. If a new commander takes responsibility for the case after the member was offered NJP proceedings, but before findings are made and punishment, if any, has been imposed, inform the member of the identity of the new commander and provide a new opportunity (three duty days) to accept NJP proceedings or to demand trial by court-martial. **(T-0).** The new commander accomplishes this by either notifying the member about the change in writing (template is available on the Virtual Military Justice Deskbook), or by withdrawing the old DAF Form 3070 and initiating a new action on a new DAF Form 3070. If a new action is being initiated, the original case in DCMS-AMJAMS should be closed and a new case opened for the new offer. If the notification format is used, it becomes an attachment to the DAF Form 3070.

3.9.2. If a change in commanders occurs after imposition of punishment but before the appeal decision has been made, inform the member in writing of the identity of the new commander and obtain an acknowledgment of this change from the member. Attach the notification and acknowledgment to the original DAF Form 3070. Such a change neither impacts the former commander's action nor affords the member additional rights or response time. The new commander has full authority to ensure completion of the action, to include acting on appeal of punishment the new commander could not have independently imposed (e.g., the new commander is junior in grade to the imposing commander and could not have imposed the punishment the initiating commander imposed on the member). However, if an appeal is made, the former commander prepares a written summary of any oral presentation and any other information considered, consistent with **paragraph 4.6.3**. Notification of a change in commanders merely for the UIF decision is not required.

3.9.3. If a commander notifies a member of the intent to recommend that a superior commander impose NJP, a change of the superior commander provides the identical rights, creating a new opportunity (three duty days) to accept or reject NJP. The subordinate commander follows the procedures set forth above in such situations.

3.10. Discovery of Additional Offenses. When evidence of any additional offense arises following initiation of NJP proceedings, but before the member is notified of the punishment, a commander may:

3.10.1. Proceed with the initial NJP proceeding and, provided initiation of NJP is the appropriate disposition for the additional offense(s), offer a second NJP for the additional offense(s); or

3.10.2. Withdraw the initial DAF Form 3070 and reinitiate NJP to include all offenses. If the form has been sent to a superior commander, withdrawal can only occur with the superior commander's agreement. If a new action is being initiated, the original subcase in DCMS-AMJAMS should be closed and a new subcase opened for the new offer.

3.11. Member's Decision to Accept or Reject Nonjudicial Punishment.

3.11.1. Acceptance of NJP is a choice of forum, not an admission of guilt. The member has three duty days to accept or reject NJP following offer of NJP. Weekends and holidays are counted if they are normally scheduled duty days for the member. Days the member is on approved leave status or a special pass period that has not been cancelled by the commander are not counted. The member is not required to, but may, accept or reject NJP at any point during the three duty days following offer of NJP.

3.11.2. The member or member's counsel may request an extension by submitting a written request (e.g. email, memorandum, etc.). Upon receiving the written request, the initiating commander may grant an extension for good cause. Initiating commanders should consult with the servicing legal office before granting any extension. **Note:** For traditional reservists or ANG members in Title 10 status, three duty days includes unit training assemblies (UTAs), annual tour days, or other days in which the member is in a military status. Duty days do not include any days in which the member is not in a military status, whether paid or unpaid.

3.11.3. Members must reflect their NJP decision by initialing the appropriate blocks in the member's acknowledgement and elections portion of the DAF Form 3070, signing, and then annotating the date and time signed. **(T-0).** Member must initial the appropriate block indicating whether the member:

3.11.3.1. Consulted a lawyer. **(T-0).**

3.11.3.2. Demands trial by court-martial or waives the right to court-martial and accepts NJP proceedings. **(T-0).**

3.11.3.3. Provided a written presentation. **(T-0).**

3.11.3.4. Requests a personal appearance before the commander and whether or not the member requests the personal appearance be public. **(T-0).**

3.11.4. The member has a right to consult a lawyer before making any decisions, and a lawyer may assist the member throughout the proceedings. The contact information of the closest military defense counsel should be provided to the member to further explain the member's rights. The member may retain civilian counsel at the member's own expense. The commander should encourage the member to take full advantage of this time to consult with legal counsel, to decide whether to accept NJP proceedings, and if so, to prepare matters in defense, extenuation, and/or mitigation. The right to legal counsel does not include the right to request individual military defense counsel as defined in DAFI 51-201. However, where a member asserts an attorney-client relationship with a military defense counsel other than the detailed military defense counsel, in regard to the same matter for which he or she is being offered NJP, process the request for this counsel according to the provisions of DAFI 51-201.

3.11.5. If a member does not reply with his or her elections in time, the commander may continue with the proceedings by noting "member failed to respond" in the member's acknowledgement and elections portion of the DAF Form 3070 then initialing and dating. The member's failure to respond in time is deemed an acceptance of NJP. However, if the commander has reason to believe a failure to respond resulted from reasons beyond the member's control, the commander may not, without good cause, proceed with NJP action.

3.12. Member's Presentation. A member is generally entitled to appear personally before the imposing commander and present matters in defense, extenuation, and/or mitigation, except under extraordinary circumstances or when the imposing commander is unavailable to receive the member's appearance in person or via alternative means (e.g., telephone, video teleconferencing). There is no requirement that a lawyer be made available to accompany the member at a personal appearance. See MCM, Part V, paragraph 4c(1) for the member's entitlements at a personal appearance.

3.12.1. If a personal appearance before a superior commander in proceedings initiated under **paragraph 3.8.2** is prevented by the unavailability of the superior commander or by extraordinary circumstances, the member may appear personally before the subordinate commander who served him or her with the DAF Form 3070. The subordinate commander then prepares a memorandum summarizing the presentation and forwards it to the superior commander, along with all written matters submitted by the member.

3.12.2. Under any other circumstances where a personal appearance is prevented by the unavailability of the imposing commander or by other extraordinary circumstances, the member appears personally before a person designated by the imposing commander. The designee prepares a memorandum summarizing the presentation and forwards it to the imposing commander, along with all written matters submitted by the member.

3.12.3. The commander may open the personal appearance to the public, even though the member does not request it or consent to the appearance being open, subject to the following restrictions. Public NJP at commander's calls, UTAs, and other public gatherings is inappropriate without the consent of the member. The member must be given an opportunity to consult with counsel before deciding whether or not to consent to any such public appearance. **(T-0).** NJP proceedings may be attended by a limited number of people in a more private setting (e.g., the commander's office). The individuals in attendance at NJP proceedings should normally be limited to those in the member's supervisory chain or people who can assist the decision authority (first sergeant, squadron section commander, SJA or designee, etc.).

3.12.4. If the proceedings involve a waiver of the statute of limitations, the member must sign a written waiver that becomes an attachment to the DAF Form 3070. **(T-0).** See MCM, Part V, paragraph 1f(4).

Section 3C—Imposing and Administering Punishments

3.13. Commander's Findings.

3.13.1. Following full and fair consideration of the evidence, including any matters presented by the member, using a preponderance of the evidence standard of proof, the commander indicates one of the following actions in the commander's decision of the DAF Form 3070 by initialing the appropriate block on the form:

3.13.1.1. The proceedings are terminated because NJP is not appropriate or because the member did not commit the offense(s) alleged.

3.13.1.2. The member committed one or more offenses alleged. The commander lines out with a "Z", initials and dates any offense(s) for which NJP is not appropriate or that the member did not commit. If the member committed one or more lesser included offenses, the commander consults with the SJA before changing an alleged offense to a lesser included offense.

3.13.1.3. If the commander lines out the offense(s) alleged without notation, the member is presumed to have not committed the offense. Alternatively, if the commander determined NJP is not appropriate, the commander should notate that on the "Z" through the offense. This notation is relevant for indexing purposes.

3.13.2. If the commander terminates the proceedings, the commander should notify the member of this decision, and send the original DAF Form 3070 to the servicing SJA for appropriate DCMS-AMJAMS entries. The DAF Form 3070 is then destroyed.

3.14. Commander's Punishments. The commander must consult the servicing legal office before the commander imposes punishment. **(T-3).**

3.14.1. The commander must consult directly with the servicing SJA or an attorney from the SJA's staff in lieu of the SJA. **(T-3)** Before providing a punishment recommendation on behalf of the SJA, the attorney should consult with the servicing SJA. A non-attorney shall not provide punishment advice on behalf of the SJA. **(T-0).** NOTE: A commander should consider the effect of nonjudicial punishment on the servicemember and the servicemember's record; see MCM, Part V, paragraph 1d.

3.14.2. After the commander satisfies the requirements in **paragraph 3.14.1**, the commander completes the commander's decision portion, and signs and dates the form in the indicated blocks. Punishment is recorded in the appropriate block as a continuation of the commander's decision. Examples of punishment formats are located in the Virtual Military Justice Deskbook. The date of imposition of NJP is the date the form is signed by the commander in the signature block of the commander's decision. The member should be informed of the punishment and acknowledge receipt of the action on the same date punishment is imposed. See **paragraph 4.5.2**.

3.14.3. If the punishment includes unsuspended correctional custody, the commander immediately notifies the correctional custody monitor of the details, including inclusive dates, to begin the punishment.

3.15. Permissible Punishments. Table 3.1 and **Table 3.2** set out the maximum permissible punishments, based on the grade and status of the commander and the grade of the member. If, after considering matters presented by the member, the commander determines the member committed one or more of the alleged offenses and NJP is appropriate, the commander must select at least one of the permissible punishments set out in **Table 3.1**. or **Table 3.2**. **(T-0).** The commander may suspend all or a portion of the punishment when imposed. For additional guidance on suspension of punishment, see **paragraph 5.4**. However, if the commander determines the member should not receive any form of authorized punishment, then the commander must find that NJP is not appropriate and terminate the proceedings. **(T-0).**

3.15.1. The maximum authorized punishment in a single case is subject to the limitations in MCM, Part V, paragraph 5d.

3.15.2. No more than one-half of the member's pay per month is subject to forfeiture, regardless of the number of NJPs imposed. If the member is reduced in grade, the maximum forfeitures are calculated based upon the reduced grade, even if the reduction in grade is suspended.

3.15.3. Subject to the restrictions outlined in this paragraph, extra duties imposed as part of NJP may be required to be performed at any time and for any length of time during the period of punishment. No extra duties may be imposed that constitute: cruel or unusual punishment; punishment not sanctioned by the customs of the Air Force or Space Force (e.g., using the member as a personal servant); duties normally intended as an honor (e.g., assignment to honor guard); actions required to be performed in an unnecessarily degrading manner (e.g., an order to clean a floor with a toothbrush); or duties that are a safety or health hazard to the member.

3.15.4. Frocked commanders may exercise only that authority associated with their actual pay grade. **(T-0).** No increased punishment authority is conferred by assumption of the title and insignia of the frocked grade.

3.15.5. Officers in the grade of lieutenant colonel and below may not impose NJP on an officer.

3.16. Punishment Effective Date. Unsuspended reductions in grade and forfeitures of pay take effect on the date the commander imposes punishment. This is reflected as the date the commander signs block 4 of the DAF Form 3070. All other unsuspended punishments take effect immediately upon notification to the member, unless the commander provides otherwise in the punishment indorsement. The suspension of a punishment takes effect on the date the commander imposes punishment, not the date the member was notified of the punishment. The date of notification to the member is reflected in block 5 of the DAF Form 3070.

3.16.1. Prompt execution of punishment is desired absent unique circumstances, which include, but are not limited to, the member serving similar punishment from a prior UCMJ action, lack of available space in a correctional custody facility, physical incapacity of the member, emergency leave, and/or humanitarian considerations.

3.16.2. Punishments involving restraint (e.g., correctional custody, restrictions, or arrest in quarters) or extra duties run continuously once commenced. However, these punishments may be stayed pursuant to the member's request based upon an appeal not being acted upon in accordance with MCM, Part V, paragraph 7d, or when temporarily interrupted due to either the fault of the member or unique circumstance as listed above in **paragraph 3.16.1**. Note that special rules for imposing punishment on Air Reserve Component members may be authorized under MCM, Part V, paragraphs 5e and 5f.

3.17. Release of Information. Release of NJP information to the public subsequent to imposition of punishment should be limited to a member's grade, offense, punishment and squadron. Do not release information from the DAF Form 3070 that would readily identify the member. **(T-0).**

Section 3D—Action When the Member Demands Trial by Court-Martial

3.18. Restrictions. If a member demands trial by court-martial, the commander may not impose NJP for the offense(s) listed on the offer of NJP.

3.19. Commander's Options. The commander is not required to prefer court-martial charges, and no mandate exists to refer a case to trial by court-martial. Charges and specifications preferred following rejection of an offered NJP action are not limited to those originally included in the offer. The form and substance of the charges may be altered to meet legal or proof requirements, and new charges may be added.

3.20. Withdrawing Demand for Trial. Once a member demands trial, the member may withdraw this demand only with the commander's approval. In addition, convening authority concurrence is required if charges have been preferred. If charges were preferred and not forwarded to the referral authority, i.e., GCMCA or OSTC (e.g., the withdrawal request was received prior to the completion of any Article 32, UCMJ, preliminary hearing and forwarding of the report to the referral authority; if the charges were preferred with the intent of referring the charges to a special court-martial; or if the charges were preferred and referred to a special court-martial), the special court-martial convening authority's (SPCMCA or OSTC, as applicable)

concurrence is sufficient. Otherwise, the request must be forwarded to the GCMCA for concurrence. Procedurally, the member must submit a written request to the commander, who will then indorse approval or disapproval. **(T-0).** The request will become an attachment to the DAF Form 3070. If withdrawal is granted, pen and ink changes should be made in the member's acknowledgement and elections portion of the DAF Form 3070 to reflect the member's new decision to accept NJP proceedings and the commander should continue with the NJP proceedings. While this is the preferred resolution, initiating a new NJP proceeding remains an alternative.

Table 3.1. Enlisted Punishments.

Punishment	Imposed by O-1 through O-3	Imposed by O-4	Imposed by O-5 or Above
Additional Restrictions	May not impose NJP on E-8 or E-9	May not impose NJP on E-8 or E-9	See Note 2 for reduction of E-8 or E-9
Correctional Custody	Up to 7 days	30 days	30 days
Reduction in Rank	E-7 – No E-6 – No E-5 – One Grade E-4 – One Grade E-3 – One Grade E-2 – to E-1	E-7 – No E-6 – One Grade E-5 – One Grade E-4 – to E-1 E-3 – to E-1 E-2 – to E-1	E-9 – See Note 2 E-8 – See Note 2 E-7 – One Grade E-6 – One Grade E-5 – One Grade E-4 – to E-1 E-3 – to E-1 E-2 – to E-1
Forfeiture	7 days' pay	1/2 of 1 month's pay per month for 2 months	1/2 of 1 month's pay per month for 2 months
Reprimand	Yes	Yes	Yes
Restriction	14 days	60 days	60 days
Extra Duties	14 days	45 days	45 days

NOTES:
1. See MCM, Part V, paragraphs 5b and 5d, for further limitations on combinations of punishments.
2. E-9 or E-8 may be reduced one grade only by MAJCOM/FLDCOM commanders, commanders of unified or specified commands, or commanders to whom promotion authority to these grades has been delegated. See AFI 36-2502, *Enlisted Airmen Promotion and Demotion Programs*.
3. Frocked commanders may exercise only that authority associated with their actual pay grade.
4. For enlisted members of the ANG, the "initiating commander" recalling the member to Title 10 status may impose punishment. The "initiating commander" may be: (1) the commander to whom the member is attached in Title 10 status, (2) the 201 MSS/CC or subordinate or superior commander, or (3) the MAJCOM/FLDCOM commander recalling the member to Title 10 status (or subordinate commander to the MAJCOM/FLDCOM commander recalling the member to Title 10 status).
5. Correctional Custody is only a permissible punishment if a formal correctional custody program has been established by the installation commander in accordance with Chapter 7.

Table 3.2. Officer and Warrant Officer Punishments.

Punishment	Imposed by Colonel	Imposed by General Officer or GCMCA
Correctional Custody	No	No
Reduction	No	No
Forfeiture	No	1/2 of 1 month's pay per month for 2 months
Reprimand	Yes	Yes
Arrest in Quarters	No	30 days
Restriction	30 days	60 days
Extra Duties	No	No

NOTES:
1. Only MAJCOM/FLDCOM commanders, commanders of unified commands, and their equivalents, or higher may impose NJP on general officers.
2. See MCM, Part V, paragraphs 5b and 5d, for further limitations on combinations of punishments.
3. Only the ANG Readiness Center Commander, commander to whom the member is attached in Title 10 status, or MAJCOM/FLDCOM commander (or subordinate commander to the MAJCOM/FLDCOM commander) recalling the member to Title 10 status may impose punishment.

Chapter 4

NONJUDICIAL PUNISHMENT APPEALS AND SELECTION RECORDS

4.1. General Guidance. An appeal may be taken if a member considers the punishment to be unjust or disproportionate to the offense or because the member asserts the offense was not committed.

4.2. Appellate Authority. NJP appeals are made to the "next superior authority," as defined in DAFPD 51-2. The DAF officer who acts on the appeal must at least be a field grade officer and equal or higher in grade to the officer who imposed the punishment. **(T-0).**

4.2.1. When a principal assistant to a commander of an Air Force or Space Force establishment, unit, or non-unit (other than Air Force or Space Force elements of organizations outside the DAF) imposed punishment, the "next superior authority" is the next DAF commander superior to the commander who delegated the power. See DAFPD 51-2.

4.2.2. When a detachment commander imposes punishment, the "next superior authority" is the detachment commander's immediate commander, unless the immediate commander is not the appointing authority (e.g., if the detachment commander is appointed by a group commander, the appellate authority cannot be a squadron commander of the squadron). Detachment commanders exercise the authority of the commander who appoints them as detachment commanders. See DAFI 51-509.

4.2.3. When a section commander of a squadron imposes punishment, the "next superior authority" is the squadron commander's superior commander. However, when a section commander for all other units or elements imposes punishment (e.g., group, wing, delta, garrison, numbered air force, major command, field command, center, field operating agency, and direct reporting unit), the "next superior authority" is the section commander's immediate commander.

4.2.4. When the SAFO/SSFO or Air Force element commander for the headquarters staff organization in a unified command, specified command, subordinate unified command, joint task force, combined command or combined task force imposes punishment, the "next superior authority" is the SAFO/SSFO or Air Force/Space Force element commander in the headquarters staff organization at the next superior level component command in the joint or combined force, if any, or the GCMCA for the Air Force or Space Force unit responsible for providing support to the headquarters staff organization under AFI 25-201.

4.2.5. When the next superior authority is not at least a field grade officer and equal to or higher in grade to the SAFO/SSFO or Air Force/Space Force element commander who imposed the punishment, or when the SAFO/SSFO or Air Force/Space Force element commander for the headquarters staff of a unified command imposed the punishment, the Chief of Staff of the Air Force (CSAF) or Chief of Space Operations (CSO), as applicable, is the "next superior authority," and the appeal is forwarded directly to Investigations, Inquiries, and Relief Division (JAJI). CSAF may delegate this responsibility to the Vice Chief of Staff of the Air Force (VCSAF) and the CSO may delegate this responsibility to the Vice Chief of Space Operations (VCSO). See DAFPD 51-2.

4.2.6. When the SAFO or Air Force element commander of an activity outside the DAF imposes punishment, the "next superior authority" is AFDW/CC. However, if AFDW/CC is not equal to or higher in grade to the SAFO or element commander who imposed punishment, CSAF, or VCSAF if CSAF delegated the authority, is the "next superior authority" and the appeal is forwarded directly to JAJI.

4.2.7. When the SSFO or Space Force element commander of an activity outside the DAF imposes punishment, the "next superior authority" is CFC/CC. However, if CFC/CC is not equal to or higher in grade to the SSFO or element commander who imposed punishment, the CSO, or the VCSO if CSO delegated the authority, is the "next superior authority" and the appeal is forwarded directly to JAJI.

4.2.8. When the commander of an Air Force MAJCOM, direct reporting unit, or field operating agency imposes punishment, SecAF has designated CSAF as the appellate authority and authorized CSAF to delegate this authority to VCSAF. See DAFPD 51-2. Forward such appeals directly to AF/JAJI.

4.2.9. When the commander of a Space Force FLDCOM, direct reporting unit, or field operating agency imposes punishment, SecAF has designated CSO as the appellate authority and authorized CSO to delegate this authority to VCSO. See DAFPD 51-2. Forward such appeals directly to AF/JAJI.

4.2.10. When a joint force commander, including a DAF officer acting in his or her capacity as a joint force commander, imposes punishment, the "next superior authority" is the next superior joint force commander. When the commander of a unified command imposes punishment, or is otherwise disqualified from being the appellate authority, forward the appeal to the Chairman of the Joint Chiefs of Staff for appropriate action by the Secretary of Defense or designee, in accordance with Joint Publication 1. The SAFO, SSFO, or commander of the member's element notifies the servicing SJA of the appeal. The servicing SJA coordinates with the SJA or legal counsel who services the appellate authority to explain DAF policy and procedures for NJP and to advise the appellate authority's SJA or legal counsel that collateral decisions and processing (including DCMS-AMJAMS inputs, personnel and finance actions, and UIF and selection record entries) will be made within DAF channels.

4.2.11. When a multiservice commander in a combined command, combined task force, or activity outside the DAF imposes NJP on a DAF member, the next superior authority is the immediate multiservice commander who is a member of the U.S. Armed Forces and who is superior to the imposing commander, if any, or the DAF GCMCA with UCMJ authority over the Air Force member. However, if the next superior authority or GCMCA is junior in grade to the imposing commander, the VCSAFAF/CV or VCSO, as applicable, is the "next superior authority" and the appeal is forwarded directly to JAJI.

4.2.12. When a unique command structure or situation exists, AF/JAJM may designate another individual to act as the appellate authority. Applications for such designations shall be submitted to JAJM in writing through appropriate command channels.

4.3. Format. Appeals must be documented on the DAF Form 3070. **(T-0).** No right or entitlement to a personal appearance before the appellate authority is provided.

4.4. Delegation of Authority. If the "next superior authority" is a general officer or a GCMCA, that individual may delegate the power to act on appeals to a principal assistant in the manner described in **paragraph 2.5**. SPCMCAs, and wing, delta, installation, or equivalent level commanders can designate a deputy commander to act on nonjudicial punishment appeals in which the SPCMCA, delta, installation, or equivalent level commander is the "next superior authority." This authority may not be further delegated.

4.5. Procedures for Appeals.

4.5.1. Punishment is not stayed pending appeal, except as provided in MCM, Part V, paragraph 7d.

4.5.2. At the time a commander informs the member of the punishment, the commander:

4.5.2.1. Directs the member to acknowledge receipt of the punishment and right to appeal by signing the member's acknowledgement portion of the DAF Form 3070 and then annotating the date and time signed. If the member refuses to acknowledge receipt of the punishment and rights to appeal, the commander notes "member refused to acknowledge receipt of punishment and right to appeal," initials, and dates in the member's acknowledgement portion of the DAF Form 3070. The time limit for appeal is still applicable despite the member's failure to sign the DAF Form 3070.

4.5.2.2. Informs the member that the appeal can be filed anytime within five calendar days. **(T-0).** A decision not to appeal is final.

4.5.2.3. Explains that if an appeal is not filed within five days, appellate rights will be waived. The commander may grant an extension of time to appeal for good cause and upon written application received within the five-day appeal period.

4.5.2.4. Explains to the member that any documents supporting the appeal must be submitted at the same time the member makes the appeal decision.

4.5.2.5. Explains to the member that he or she is entitled to the advice of legal counsel in making the appeal decision.

4.5.3. The member must reflect his or her appeal decision by initialing only one appeal decision block in the member's appeal decision portion of the DAF Form 3070, signing the form, and then annotating the date and time signed.

4.5.3.1. The member makes a choice between not appealing, appealing and submitting matters in writing, or appealing and not submitting matters in writing.

4.5.3.2. The appeal decision is a one-time decision made during the five calendar days. All documents supporting the appeal must be submitted at the same time as the appeal decision. If the member decides not to appeal, the imposing commander makes the UIF determination in the unfavorable information file action portion of the DAF Form 3070 and continues processing the NJP action. If the member decides to appeal, the imposing commander processes the appeal, and, if applicable, the filing decision required in accordance with **paragraph 4.8**.

4.5.3.3. The member's decision to appeal or not to appeal in the member's appeal decision portion of the DAF Form 3070 ends the time limit for appeal. If the imposing commander has not acted on the appeal, the member may withdraw the appeal. Pen and ink changes should be made in the member's appeal decision portion of the DAF Form 3070 to reflect the member's decision not to appeal. Any changes should be initialed and dated by the member.

4.5.3.4. If the member refuses or fails to sign his or her appeal decision within the time limit for appeal, the commander notes in the member's appeal decision portion of the DAF Form 3070 "member refused/failed to make appeal decision within the time limit for appeal" and initials and dates. The member's failure to submit a timely response is deemed a waiver of his or her right to appeal.

4.5.4. In the event a member in the grade of E-5 upon which NJP has been imposed promotes to E-6 prior to making an appellate election, a DAF Form 3070B or 3070D as appropriate, should be added as a supplement to the DAF Form 3070A, allowing the member to make elections for SNCO selection record purposes in accordance with **paragraph 4.8**. A memorandum should be included as a formal attachment explaining the supplementation.

4.6. Action on Appeal by Imposing Commander.

4.6.1. The imposing commander examines the written matters submitted, if any, and must consult directly with the servicing SJA or an attorney on the servicing SJA's staff in lieu of the SJA. Before providing an appeal recommendation on behalf of the SJA, the attorney from the SJA's staff should consult with the servicing SJA. A non-attorney shall not provide appeal advice on behalf of the SJA. **(T-0).** After receiving a recommendation, the commander may deny the appeal or grant the relief requested in whole or in part, by using his or her powers to suspend, mitigate, remit, or set aside the punishment. See **Chapter 5**.

4.6.2. The imposing commander records his or her decision on the appeal in the commander action on appeal portion of the DAF Form 3070 by initialing the appropriate block and signing the form. If the imposing commander grants relief, he or she annotates the relief granted in the continuation portion of the DAF Form 3070 as a continuation of the commander action on appeal. The annotation should state, "As the commander who imposed nonjudicial punishment, I grant your appeal [(in full)(in part)] as follows: (State the specific relief granted)." If the commander grants full relief, do not forward the appeal. If the commander grants less than the full relief requested, forward the appeal to the appellate authority.

4.6.3. If the appeal is forwarded to the appellate authority, the servicing legal office will forward the NJP and the following:

4.6.3.1. All written materials considered in imposing the punishment, as well as a summary of any other information considered and its source;

4.6.3.2. Matters submitted by the member on appeal, if any;

4.6.3.3. The imposing commander's written comments to include a summary of any oral presentation by the member, if any;

4.6.3.4. A statement concerning whether the member has served any portion of the punishment; and

4.6.3.5. In the event there is a change of command after the commander initiates NJP, the memorandum provided to the member notifying him or her of the change of commander should also be forwarded to the appellate authority.

4.6.4. In addition to the matters required under **paragraph 4.6.3**, the imposing commander may provide, to the appellate authority, written comments by indorsement through the servicing legal office addressing any contentions raised by the member, the rationale for imposing punishment, and a recommendation for action on the appeal. A written legal review memorandum is not required. **Note:** Any written comment (e.g., memo, email, handwritten note) about the commander's rationale must be provided to the member.

4.7. Action on Appeal by Appellate Authority.

4.7.1. The appellate authority reviews the written material forwarded by the initiating commander and must consult directly with the servicing SJA or an attorney on the servicing SJA's staff in lieu of the SJA. **(T-0).** Before providing an appeal recommendation on behalf of the SJA, the attorney from the SJA's staff should consult with the servicing SJA. A non-attorney shall not provide appeal advice on behalf of the SJA.

4.7.2. The appellate authority may deny the appeal or grant the relief requested in whole or in part, by using the same power as may be exercised by the imposing commander to suspend, mitigate, remit, or set aside the punishment. See **Chapter 5**. The appellate authority records his or her decision on the appeal in the appellate authority action on the appeal portion of the DAF Form 3070 by initialing the appropriate block and signing the form. Relief granted (either in full or in part) or denied is based upon the remaining punishment after the initiating commander acts on the appeal.

4.7.3. Record any relief granted in the continuation portion of the DAF Form 3070 as a continuation of the appellate authority action on appeal. Unless otherwise stated, relief granted as a result of an appeal is effective from the date the punishment was initially imposed. See MCM, Part V, paragraph 7f(1).

4.7.4. If all punishment is disapproved, the entire action must be set aside and removed from the member's record. If all punishment is disapproved, the proceedings are terminated and the commander should notify the member of the decision, send the original DAF Form 3070 to the servicing SJA for appropriate DCMS-AMJAMS entries, and then the DAF Form 3070 should be destroyed. An NJP action cannot consist of "no punishment." **(T-0).**

4.8. Officer Selection Record and Enlisted Selection Record Determination.

4.8.1. For enlisted members in the grade of E-6 and above, the commander must make a decision regarding selection record processing, and the member must acknowledge that he or she has been informed of the decision before the servicing SJA may complete the legal review block. For enlisted members, if the commander elects not to file the NJP in the member's selection record, the NJP is not forwarded for superior commander review. The Air Force Reserve does not use SNCO selection records.

4.8.2. For all officers, all completed nonjudicial punishment will be filed in the electronic Officer Selection Record (eOSR) and will be considered by promotion selection, special selection, federal recognition (ANG specific), and selective continuation boards to the grade of W-3 through W-5 and O-4 and above (to include processes for W-2 and O-3 promotions that have "extraordinary adverse information" per Department of Defense Instruction (DoDI) 1320.14, DoD Commissioned Officer Promotion Program Procedures). (T-0) See DAFI 36-2907, para. 1.2.)

4.8.3. Follow the procedures in DAFI 36-2608, *Military Personnel Records System*, for completing the selection record requirements for NJP. Refer to DAFI 36-2608 for instructions on where to forward NJP documents, to include records of vacation or supplemental proceedings (i.e., DAF Form 366 and DAF Form 3212).

4.9. UIF Decision. Before sending the DAF Form 3070 to the servicing SJA, but after completing all other action, including appeal, the commander imposing punishment indicates whether the NJP record will be filed in an enlisted member's UIF by initialing, signing, and dating the appropriate block in the unfavorable information file action portion of the DAF Form 3070. The imposing commander should make this determination even in cases that were appealed. However, if the imposing commander is not available, any person authorized by DAFI 36-2907, *Adverse Administrative Actions*, may make the UIF determination. Additionally, in certain scenarios described in DAFI 36-2907, UIFs may be mandatory for enlisted members. UIFs are mandatory for officers who receive NJP as noted on the DAF Form 3070. The member must acknowledge or the command must note the member refused to acknowledge or was unable to acknowledge that he or she has been informed of the UIF decision before the SJA may complete the legal review block.

4.9.1. It is within the commander's discretion to provide the member with an opportunity to respond to the UIF decision, regardless of whether the entry of the NJP record in the UIF is mandatory or optional.

4.9.2. In a joint or combined command or task force, if an officer assigned to a different service imposed NJP on a DAF member, the DAF officer identified in DAFI 36-2907 must make the UIF decision.

4.9.3. The member acknowledges that he or she was informed about the commander's decisions on the UIF, selection record, and appeal, as applicable, by signing and dating the member's acknowledgement block on the DAF Form 3070. If the member refuses to sign, the commander notes "member refused to sign" in this block and initials and dates. If the member is unable to sign, the commander notes "member unable to sign" in this block and initials and dates.

4.10. Action by the Servicing SJA. After acknowledgment of the UIF decision, the imposing commander returns the record to the servicing SJA. The reviewing attorney signs and dates the servicing SJA legal review block of the DAF Form 3070 (or of the DAF Form 366 or 3212, when applicable) when the record is found legally sufficient. The NJP action is then final and admissible in courts-martial for purposes of R.C.M. 1001(b)(2). This is also the final action for purposes of the timeliness milestones as recorded in DCMS-AMJAMS.

4.10.1. After completing the servicing SJA legal review, the servicing legal office expeditiously sends:

4.10.1.1. One copy of the record to the officer who supervises the correctional custody program if the case involves unsuspended correctional custody.

4.10.1.2. Two copies of the record, with an AF Form 1373, *MPO Document Control Log-Transmittal*, to the AFO if the punishment affects the member's pay. The SJA keeps a copy of the AF Form 1373. The person who provided the copies of the record to the AFO will date and initial the appropriate part of the MPF and AFO distribution block of the DAF Form 3070 (or of the DAF Form 366 or 3212, when applicable) or mark "N/A" if not applicable.

4.10.1.3. One copy of the record to the unit UIF monitor if the record will be filed in a UIF. The unit UIF monitor is responsible for ensuring entry into a UIF. See DAFI 36-2907.

4.10.1.4. One copy of the record to the servicing MPF, with an AF Form 1373, in all cases. The servicing legal office keeps a copy of the AF Form 1373. The person who provided the copy of the record to MPF will date and initial the appropriate part of the MPF and AFO distribution block of the DAF Form 3070 (or of the DAF Form 366 or 3212, when applicable).

4.10.1.5. The original record (and two complete copies for officer and warrant officer NJPs) to the SJA for the officer exercising GCMCA, after providing the record to the MPF and AFO and noting the date of receipt. File the receipted copy of AF Form 1373 as prescribed in **paragraph 6.10**.

4.10.1.6. In cases involving officers or warrant officers, one copy of the record and all supporting documents to the member's commander for forwarding in accordance with DAFI 90-301. See **paragraph 1.2.1.1**.

4.10.1.7. If applicable, one copy of the NJP to law enforcement in accordance with **Section 6B.**

4.11. Action by the Military Personnel Flight (MPF) and Accounting and Finance Office (AFO). The MPF and AFO, on receiving the record, acknowledge receipt on a copy of the AF Form 1373, take appropriate actions, and return this form to the servicing legal office.

4.12. Action by the GCMCA SJA. The GCMCA SJA or attorney from that SJA's staff performs a supervisory review on behalf of the GCMCA.

4.12.1. The GCMCA SJA review will include an administrative supervisory review of the DAF Form 3070. This includes a review to ensure that: (1) the DAF Form 3070 is properly completed, (2) jurisdiction over the member existed, and (3) the specifications reasonably stated an offense cognizable under the UCMJ; see **paragraph 3.7**.

4.12.2. The GCMCA legal office returns legally deficient proceedings to the servicing legal office for correction. The servicing legal office should pay particular attention to any deficiency that may require updating the effective date of punishment.

4.12.3. After review, the GCMCA reviewing attorney signs and dates the GCMCA SJA administrative supervisory review block of the DAF Form 3070 (or of the DAF Form 366 or 3212, when applicable) when the record is in compliance with DAFI 51-202 and sends a copy of it to the servicing SJA.

4.13. Filing of the Original Record on Nonjudicial Punishment Proceedings. The GCMCA SJA sends the NJP action with the original signature of the GCMCA reviewer to one of the addresses listed in paragraphs **4.13.1** through **4.13.4** for filing in the master personnel record group. For instructions regarding the selection record portion of the DAF Form 3070, where applicable, refer to **paragraph 4.8**.

4.13.1. For Regular Air Force members and reservists on extended active duty (as defined in **Attachment 1**):

4.13.1.1. For general officers, send to AF/A1LG, 1040 Air Force Pentagon, Washington, DC 20330-1040. Also send one copy to the custodian of the command selection record group. See DAFI 36-2608. If the officer is a member of a tenant command from another MAJCOM/FLDCOM, send a copy to that MAJCOM's/FLDCOM's SJA.

4.13.1.2. For O-6s or O-6 selects, send to AF/A1LO, 1040 Air Force Pentagon, Washington, DC 20330-1040. Also send one copy to the custodian of the command selection record group. See DAFI 36-2608. If the officer is a member of a tenant command from another MAJCOM/FLDCOM, send a copy to that MAJCOM's/FLDCOM's SJA.

4.13.1.3. For E-9s or E-9 selects, send to AF/A1LE, 1040 Air Force Pentagon, Washington, DC 20330-1040. If the E-9 or E-9 select is a member of a tenant command from another MAJCOM/FLDCOM, send a copy to that MAJCOM's/FLDCOM's SJA

4.13.1.4. For the following personnel, send to AFPC/DPSORM, JBSA Randolph, TX, 78150-4703 OFFICIAL BUSINESS, and to the custodian of the command selection record group, as applicable.

4.13.1.4.1. Officers in the grade of O-5 or below (excluding O-6 selects) and warrant officers; and

4.13.1.4.2. All enlisted personnel below the grade of E-9 (excluding E-9 selects).

4.13.2. For reservists not on extended active duty, send the original to HQ ARPC/DPTARA, 18420 E. Silver Creek Ave. Bldg. 390, MS 68, Buckley SFB, CO 80011.

4.13.3. For ANG members, send to the military justice attorney, Air National Guard Readiness Center, NGB-GC, 3501 Fetchet Avenue, Suite 431, Joint Base Andrews, MD 20762. Forward a copy of the ANG member's Title 10 orders with the NJP. NGB-GC serves as a central collection point for these actions and will notify the specific state adjutant general concerned and will determine ultimate disposition of the record.

4.13.4. For cases involving USAFA Cadets, send all records to HQ USAFA/DPY, 2360 Vandenberg Drive, Suite 3C24, USAF Academy, CO 80840-8720. Upon commissioning, these records will be forwarded to the officer master personnel record group, AFPC/DP1ORM, 550 C Street West, Joint Base San Antonio-Randolph, TX 78150-4723.

Chapter 5

SUPPLEMENTARY ACTIONS

Section 5A—Suspension, Mitigation, Remission, and Set Aside of Punishment

5.1. General Guidance. Use the DAF Form 3212 to record actions to suspend, mitigate, remit, or set aside punishment, unless such actions are accomplished as part of an appeal. If such actions are accomplished as part of an appeal, do not use the DAF Form 3212, and follow the guidance in **Chapter 4**.

5.2. Consultation Required. Commanders must consult the servicing SJA, or an attorney on the servicing SJA's staff in lieu of the SJA, before taking action to suspend, mitigate, remit, or set aside a previously imposed punishment. **(T-3).** A commander may take such action upon his or her own initiative or upon a request from the member. A sample format is located in the Virtual Military Justice Deskbook.

5.3. Action by Successor in Command. A commander's power to suspend, mitigate, remit, or set aside NJP passes to any successor in command. For these purposes, the successor in command may be either:

5.3.1. The officer who succeeded to the command or the position of the officer who imposed the punishment and who is authorized to impose on the member the punishment involved; or

5.3.2. An officer authorized to impose on the member the punishment involved, if the member has been reassigned.

5.3.3. If a successor in command lacks authority, that officer forwards the member's request to the next superior authority. See MCM, Part V, paragraph 7f(1); AFPD 51-2.

5.4. Suspension. See MCM, Part V, paragraph 6a. Suspension is the postponement of the application of all or part of the punishment for a specific probationary period, until a specified date. It will be automatically remitted (canceled) at the end of that period if the member does not violate the condition(s) of suspension. Suspension is often warranted for a first offense or where persuasive extenuating or mitigating circumstances exist.

5.4.1. A commander may, at any time, suspend any part or amount of the unexecuted punishment imposed. An executed punishment of reduction in grade or forfeiture may be suspended, provided the suspension is accomplished within a period of four months after the date imposed.

5.4.2. Suspension of punishment may not be for a period longer than six months from the date the suspension was imposed **(T-0).** The expiration of the member's current enlistment or term of service automatically terminates any period of suspension. (**Note**: Six months may be longer than 180 days; for example, 1 July punishment suspended through 31 December.) A suspension action will set a specific date after which, unless sooner vacated, the suspension will terminate and the punishment will be remitted. This date should not exceed the member's expiration of term of service at the time suspension action is taken.

5.4.3. When reduction in grade is later suspended, the member's original date of rank (DOR), held before the reduction, is reinstated. However, the effective DOR is the date of the document directing the suspension. See DAFMAN 36-2604, *Service Dates and Dates of Rank*.

5.4.4. Suspension of a punishment automatically includes a condition that the service member will not violate any punitive articles of the UCMJ. Commanders may specify other conditions as well, but shall consult with the servicing SJA in accordance with **paragraph 5.2** before imposing them. **(T-3).** Include any additional conditions of suspension within the punishment indorsement. The additional condition(s) upon which suspension is based must be clearly stated and capable of being completed during the period of suspension. **(T-0).** A sample format is located in the Virtual Military Justice Deskbook.

5.4.5. The member, if undergoing a suspended reduction in grade, is ineligible for promotion, including testing and consideration if already tested. See AFI 36-2502 and SPFI 36-2502. The member, if serving any suspended punishment, is ineligible to reenlist, but may be eligible for an extension of enlistment. See DAFI 36-2606, *Reenlistment and Extension of Enlistment in the United States Air Force*.

5.5. Mitigation. See MCM, Part V, paragraph 6b. Mitigation is a reduction in either the quantity or level of a punishment with its general nature remaining the same. For example, a punishment of correctional custody for 20 days can be mitigated to correctional custody for 10 days or to restriction for 20 days. The first action lessens the quantity and the second lessens the quality, with both mitigated punishments remaining of the same general nature as correctional custody, that is, deprivation of liberty. However, a mitigation of 10 days correctional custody to 14 days restriction would not be permitted because the quantity has been increased. **(T-0).**

5.5.1. With the exception of reduction in grade, only the unexecuted part or amount of the punishment can be mitigated. **(T-0).**

5.5.2. A reduction in grade can only be mitigated to forfeitures. A reduction in grade will not be mitigated to a lesser reduction or no reduction**. (T-0).** Mitigation of a reduction in grade must be done within four months after the date of execution. **(T-0).** When mitigating a reduction in grade to forfeiture of pay, the amount of the forfeiture imposed may not be greater than the amount that could have been imposed by the officer who initially imposed the mitigated punishment. **(T-0).** See MCM, Part V, paragraph 6b. If the reduction was executed, the DOR for the restored grade is the date of the indorsement mitigating the punishment. For example, if a member receives NJP consisting of a reduction in grade on 1 June, and on 1 July the commander subsequently mitigates the reduction to a forfeiture, both the effective date and DOR for the restored grade is 1 July. See DAFMAN 36-2604.

5.5.3. A forfeiture of pay, to the extent to which it has not been executed, may be mitigated to a lesser forfeiture of pay, but cannot be mitigated to other forms of punishment. **(T-0).**

5.5.4. Restraints on liberty (such as arrest, correctional custody, extra duties, and restriction) may not be mitigated to forfeitures or reduction in grade because the general nature of the punishment would be changed. **(T-0).** Arrest in quarters can be mitigated to restriction; correctional custody can be mitigated to extra duties or restriction or both; extra duties can be mitigated to restriction; but restriction, being the least severe restraint on liberty, cannot be mitigated to a different form of punishment. When a restraint on liberty is mitigated, the lesser punishment may not run for a period greater than the remainder of the period for which the punishment mitigated was initially imposed. For example, when a person is given 15 days of correctional custody and has served five days of this punishment and correctional custody is mitigated to restriction, the mitigated punishment may not exceed restriction for a period of 10 days.

5.6. Remission. See MCM, Part V, paragraph 6c. Remission is simply the cancellation of any portion of the unexecuted punishment. An unsuspended reduction is executed on imposition. It can, therefore, never be remitted, but under appropriate circumstances may be suspended, mitigated, or set aside.

5.7. Set Aside. See MCM, Part V, paragraph 6d. Set aside occurs when the punishment, or any part or amount thereof, whether executed or unexecuted, is removed from the record and any rights, privileges, pay, or property affected by the relevant portion of the punishment are restored. A set aside of all punishment voids the NJP. Commanders use the DAF Form 3212 to set aside punishment. A commander may not set aside punishment more than four months after execution of the punishment, unless the commander determines unusual circumstances exist and explains them in an attachment to the DAF Form 3212. **Note:** The servicing SJA should obtain guidance from the GCMCA SJA before initiating a set aside on an NJP punishment more than four months after the execution of punishment.

5.7.1. Set aside is not normally considered a rehabilitation tool, like suspension, remission, and mitigation. Commanders should not routinely set aside punishment but should exercise this discretionary authority only in the rare and unusual case where a question concerning the guilt of the member arises or where the best interests of the DAF are served by clearing the member's record.

5.7.2. Setting aside a punishment in its entirety restores the member to the position held before imposition of the punishment, as if the NJP had never been initiated. For example, if a member has been reduced in grade through NJP, and the reduction is later set aside, the effective date and DOR revert to that held before reduction. See DAFMAN 36-2604.

5.8. Limitations on Suspension, Mitigation, Remission and Set Aside of Punishment. A commander can suspend, mitigate, remit, or set aside NJP, only if the commander has the authority to impose that punishment. For example, a commander in the grade of captain or lieutenant cannot suspend, mitigate, remit, or set aside punishment imposed by a field grade commander beyond what the captain or lieutenant could impose. A commander not empowered to act may recommend suspending, mitigating, remitting, or setting aside an action to the next superior authority empowered to impose such punishment(s).

5.9. Processing Requirements. Process and file all requests to suspend, mitigate, remit, or set aside punishment, and any actions taken in response (to include memorandums documenting denials), with the original NJP record and ensure inclusion with other official copies, including those at AFPC, if applicable.

Section 5B—Vacating a Suspended Punishment

5.10. General Guidance. Commanders must consult the servicing SJA before taking action to vacate a suspended punishment. **(T-3).** A commander may vacate all or a portion of the suspended punishment. Vacating a suspended NJP is not itself a new NJP. A commander can impose NJP for the same violation of a punitive article of the UCMJ upon which the vacation action is based. MCM, Part V, paragraph 6a(5) provides further guidance on vacation actions.

5.11. Notification to the Member. Except when prevented by unauthorized absence of the member, the commander completes block 1 of the DAF Form 366, signs and dates the form, and causes the member to be notified and advised of his or her rights, using the form. Normally, the commander notifies and serves the member, then signs and annotates the date and time the member was served notice of the proceeding in block 2 of the DAF Form 366. Where circumstances prevent the commander from personally notifying and serving the DAF Form 366 on the member or the commander elects not to do so, the commander may direct a subordinate, senior in rank to the member (when practicable), to notify and serve the member. The subordinate annotates the date and time of service and signs in block 2 of the DAF Form 366 as the person serving the member. Regardless of who serves the member, provide the member with a copy of both pages of the DAF Form 366. Make available to the member all statements and evidence upon which the commander intends to rely in making his or her decision.

5.11.1. The servicing SJA provides a description of the basis for vacating the suspended punishment (e.g., misconduct or failure to meet an additional condition upon which the suspension was based) and other information pertinent to the suspended punishment on the DAF Form 366.

5.11.2. If a new commander assumes responsibility for the case after a proceeding to vacate suspended NJP has been initiated, but before the decision to vacate is made, inform the member of the identity of the new commander and provide three duty days to present matters. The new commander accomplishes this either by notifying the member about the change in writing or by withdrawing the old DAF Form 366 and initiating a new proceeding to vacate on a new DAF Form 366. If the notification format is used, it becomes an attachment to the DAF Form 366.

5.11.3. Notification of proceedings to vacate a suspended NJP may be provided to officers by the commander who originally recommended that another commander punish the member under Article 15, UCMJ (e.g., the wing commander who recommended the numbered air force commander punish the member). This notification can be provided by modifying the DAF Form 366 in block 1.d, to include the statement, "Upon receipt of your presentation, if any, the decision whether to vacate your punishment will be made by [Name/Grade of CC]."

5.11.4. The member may present matters in defense, extenuation, and/or mitigation regarding the violation on which the vacation action is based.

5.11.5. The member may make either a written presentation or personal appearance or both. If the member elects to make a personal appearance, he or she may personally appear before the commander authorized to vacate suspension of the NJP. If such an appearance is impracticable due to the unavailability of the commander or by extraordinary circumstances, the member may appear before a person designated by the commander who will prepare a summary of the personal appearance for the commander. At the personal appearance, the member may: (a) present evidence; (b) present witnesses who are reasonably available; and (c) be accompanied by someone to speak on his or her behalf. There is no requirement that a lawyer be made available to accompany the member at the personal appearance.

5.12. Member's Elections. The member has three duty days to make his or her elections. The member must initial in block 3 of the DAF Form 366 whether the member consulted a lawyer, attached a written presentation, or requested a personal appearance before the commander. The commander may, upon written application, grant an extension for good cause.

5.12.1. If a member does not reply with his or her elections in time, the commander may continue with the proceedings and notes in block 3 of the DAF Form 366 "member failed to respond" and initials and dates.

5.12.2. The member's failure to respond in time does not prevent the commander from continuing with the vacation proceedings. However, if the commander has reason to believe a failure to respond resulted from reasons beyond that member's control, the commander may not, without good cause, proceed with vacation proceedings.

5.13. Timing. Vacation of a suspension must be based on the violation of the condition(s) of the suspension and occur within the period of suspension. **(T-0).** To vacate a suspension, the commander must present the member with the DAF Form 366 before the end of the suspension period. **(T-0).** The suspension period is stayed if the member has been properly notified via DAF Form 366 during the suspension period. The member's unauthorized absence also stays the suspension period.

5.14. Commander's Decision.

5.14.1. Following full and fair consideration of the evidence, including any matters presented by the member, using a preponderance of the evidence standard of proof, the commander indicates one of the following actions in block 4a of the DAF Form 366 by initialing the appropriate block on the form:

5.14.1.1. The vacation proceedings are terminated because vacation of the suspended punishment is not appropriate or because the member did not violate the condition(s) of the suspension.

5.14.1.2. The member violated one or more of the conditions of the suspension. The commander lines out and initials any violations for which vacation of the suspended punishment is not appropriate or which the member did not violate.

5.14.2. The commander completes block 4 of the DAF Form 366 and signs and dates the form in the indicated blocks.

5.14.2.1. If the commander terminates the proceedings, the original DAF Form 366 is sent to the servicing SJA for appropriate DCMS-AMJAMS entries. The DAF Form 366 is then destroyed.

5.14.2.2. Punishment is recorded in item 9 of the DAF Form 366 as a continuation of block 4.a(2).

5.14.3. At the time a commander informs the member of the vacation decision, the commander directs the member to acknowledge the action taken on the proceedings of vacation of suspended NJP and that there is no right to appeal by signing and dating block 5 of the DAF Form 366. **Note**: If the member refuses to acknowledge receipt of the vacation action, the commander notes in item 5 "member refused to acknowledge receipt of vacation action," and initials and dates.

5.15. Effect on Suspended Reductions. If a reduction in grade is suspended, but the suspension is later vacated, the DOR in the grade to which the member is reduced is the date the original reduction was imposed by the commander. The effective date, however, is the date of the vacation action. See DAFMAN 36-2604. For example, if the commander imposed punishment consisting of a suspended reduction in grade for six months on 1 June, and the commander subsequently vacates the suspension on 2 September, the effective date of the reduction is 2 September, but the member's new DOR is 1 June. Pay is not retroactively recouped.

Chapter 6

MISCELLANEOUS MATTERS

Section 6A—Indorsing Forms and Correspondence

6.1. Procedure. Prepare any indorsements to the DAF Form 3070 using normal correspondence practices. Send the correspondence involved in processing the NJP (including prescribed forms) through command channels, except as provided in **paragraph 4.13**. Unless specifically prescribed, each intermediate commander decides whether to add matters of substance by indorsement. If so, they are signed as noted below.

6.2. Content of Indorsements.

6.2.1. Any intermediate commander or delegee may recommend action or provide other information that might help the superior commander in arriving at a decision.

6.2.2. Following actions by appropriate authority, any intermediate commander, delegee, or staff officer signing under the authority line may furnish information (including administrative instructions) to the member or to a subordinate commander by indorsement.

6.3. Original. The DAF Form 3070 that contains all required signatures constitutes the "original." The original DAF Form 3070 may contain wet signatures, digital signatures, accurate reproductions of wet or digital signatures, or a combination thereof. See M.R.E. 1002 and 1003.

6.3.1. The member, upon signing the DAF Form 3070, waives all rights to challenge at a later time the authenticity of any signature already contained on the DAF Form 3070. The member waives his or her right to challenge the authenticity of any signature already contained on the DAF Form 3070 if the member refuses to sign the form and does not specifically raise in writing the validity of the signatures at the time.

6.4. Copies. Copies of Article 15 documentation are reproduced from the signed original. The SJA ensures copies of all documents and attachments that will comprise the record of punishment, as set forth in **paragraph 6.16**, are provided to the member and to each level of command involved.

Section 6B—Criminal Indexing Required

6.5. NJP Criminal Indexing Requirements. Qualifying NJP forms must be provided to law enforcement in accordance with **paragraph 6.6** and AFMAN 71-102. In cases requiring criminal indexing, the SJA sends a copy of the final DAF Form 3070 (or DAF Form 366 or 3212, when applicable) to the local OSI detachment, local Security Forces Squadron Investigations Section (SFS/S2I), (or other military law enforcement agency) and the AFCJIC for final disposition. See 18 U.S.C. § 922; DoDI 5505.11 and DoDI 5505.14. Documents should be submitted to **daf.cjic@us.af.mil** and may be submitted as attachments or via other secure method.

6.6. Distribution of the DAF Forms for Criminal Indexing.

6.6.1. Distribution must occur in any case for which the service member receiving NJP was investigated by a law enforcement agency for an offense that requires criminal indexing or DNA submission under DoDI 5505.11, DoDI 5505.14, 18 U.S.C. § 922, or DAFMAN 71-102. Law enforcement agencies within the DAF will provide DAF Form 239, Department of the Air Force Command Disposition Report in cases where this requirement is triggered. **(T-0)** Other military law enforcement agencies should notify the servicing legal office whether the investigation triggered indexing requirements.

6.6.2. Distribution must occur in any drug related NJP whether it is charged under Article 92 or Article 112a. **(T-0)** All drug related NJPs must be distributed to AFCJIC.

Section 6C—Effect of Errors in Nonjudicial Punishment Proceedings

6.7. Effect of Errors. See MCM, Part V, paragraph 1i. An NJP proceeding is not legally sufficient if it contains an error that materially prejudices a substantial right of the member.

6.7.1. If such an error exists but is discovered prior to forwarding the NJP to the superior authority, the imposing commander may either withdraw or set aside the NJP and may reinitiate NJP action. If such an error exists and is discovered after the NJP is forwarded to the superior authority, and it cannot be remedied within the same proceeding, the appropriate NJP authority sets aside the defective NJP action. In either case, a new action may be initiated, but any punishment imposed as a result of an additional proceeding may be no more severe than that originally imposed.

6.7.2. If a material error exists and can be remedied within the same proceeding without prejudicing the member's rights, reflect the correction, whenever possible, as a pen and ink change on the form initialed and dated by the commander and the member. However, if a pen and ink change will not result in a clear and unambiguous corrected record, the commander, by indorsement to the form, should notify the member of the error and thoroughly explain the correction to the record. The member signs an acknowledgment to the commander's indorsement. The indorsement and acknowledgment become an attachment to the form.

6.7.3. Administrative or clerical errors and minor errors that do not materially prejudice a substantial right of a member do not require correction to make the NJP proceeding legally sufficient. However, such errors may be corrected with pen and ink changes in the manner described above.

Section 6D—Disposition of Records of Nonjudicial Punishment Proceedings

6.8. Governing Directive. The disposition of records of NJP is governed by the Air Force RDS located at **https://afrims.cce.af.mil/**. Legal offices are authorized to destroy copies of NJP records after three years, or when no longer needed, whichever is later.

6.9. Contents of Record. The record of punishment consists of the finalized DAF Form 3070; any written response thereto submitted by the member and/or the member's defense counsel **NOTE**: Additional materials submitted by the member in mitigation, extenuation, or defense are not part of the record); any written response submitted by the member and/or the member's defense counsel on appeal; and if applicable, AF Form 366, DAF Form 3212, and any of their attachments. Those attachments include additional pages for punishment or statement of offenses, change of commander notifications, waivers of the statute of limitations, withdrawals of requests for trial, and indorsements correcting errors requiring explanation.

6.10. Supporting Documentation. Supporting documentation may include evidence, other written materials considered as a basis for imposing punishment or vacating a suspended punishment, summaries of a member's oral presentation, initiating commander indorsements for appeals, and legal reviews (if any) for an appellate authority. File such evidence and other written materials in the office of the servicing SJA of the commander who initiated the NJP as attachments to the file copy of the action, except for AF Form 1373. See RDS, Table 51-3, Rule 28. AF Form 1373 is maintained in a single file separately from the Article 15 file, and in chronological sequence based on date of receipt.

Section 6E—Signatures

6.11. Form Completion. All NJP forms (DAF Forms 3070, 3212, and 366) must be signed to be complete. All forms may be signed in wet ink or with electronic signatures in accordance with AFI 33-322. A member, by electing to waive his or her right to a court-martial and accept NJP proceeding, acknowledges and accepts that electronic signatures may be used on the NJP form.

Chapter 7

CORRECTIONAL CUSTODY (REMOTIVATION) PROGRAM

Section 7A—Program Definition and Purpose.

7.1. Correctional Custody Defined. Correctional custody is an NJP option that commanders may impose for offenses under Article 15, UCMJ. It is not confinement, as that term is used in 10 U.S.C. § 972, *Members: effect of time lost*, and time served in correctional custody is not time lost under 10 U.S.C. § 972.

7.2. Purpose. Correctional custody provides commanders a secure setting in which to maintain discipline while reeducating and remotivating DAF members to become productive members of the DAF. Correctional custody may only be imposed on DAF members of grade E-5 and below.

7.3. Program Ownership and Evaluation. Installation commanders decide whether a correctional custody program is needed by balancing potential costs and benefits. If implemented, the installation commander is responsible for ensuring a legal and effective correctional custody program on his or her installation. Programs should be evaluated at least annually to determine whether there is a continued need for the correctional custody program.

7.3.1. Because depriving DAF members of their liberty is a severe punishment, use of this program requires careful consideration. Installation commanders should consider, among others, the following factors in determining the need for a correctional custody program:

7.3.1.1. Specific deterrent effect on potential entrants;

7.3.1.2. Cost of facility, staff, vehicles, and equipment;

7.3.1.3. Burden on units providing staff;

7.3.1.4. Savings from rehabilitating entrants instead of replacing them;

7.3.1.5. Value of work entrants do for the installation;

7.3.1.6. Potential number of entrants; and

7.3.1.7. Ability to maintain the health and safety of the entrants.

7.3.2. The installation commander approves local policies and procedures for operating the program and uses referral agencies to counsel and evaluate candidates. The installation commander also uses feedback from the unit commander, referral agencies, and program supervisor to evaluate the program’s effectiveness.

7.3.3. Determining Success of Remotivation Program on Entrant. The unit commander who imposed correctional custody or superior commander decides if remotivation corrects an entrant’s delinquent behavior. Unit commanders track and evaluate an entrant’s progress in the program using regular reports from the program supervisor and referral agencies. Only the unit commander or a superior commander may terminate correctional custody prior to its expiration.

7.4. Optional Nature of Program. This program is optional. Commanders are not required to maintain a correctional custody program. However, in order to utilize the correctional custody program, the installation commander must implement a program that meets the requirements in this instruction.

Section 7B—Correctional Custody Program Facilities

7.5. Remotivation Housing. Use dormitories or other suitable housing. If quarters for unaccompanied personnel are used, clearly define the program area and make it off limits to people not involved in the program. Use partitions to make rooms in open-bay dormitories. In all cases, consider the need for fire, safety and emergency evacuation before program requirements. Detention cells co-located with law enforcement desks and DAF corrections system facilities are not to be used for this program.

7.6. Regional Facilities. If an installation facility is impracticable, installations may participate in a regional program. MAJCOMs and FLDCOMs may determine the need for regional facilities. If the installation belongs to a separate MAJCOM or FLDCOM, develop support agreements to define responsibilities.

Section 7C—Operating a Remotivation Area

7.7. Remotivation Plan. The installation commander determines whether to establish the program. If established, the installation commander is responsible for the program and designates a program supervisor for the program. The program supervisor will develop a local plan governing its operation in coordination with the SJA. The installation commander will review and approve the installation's program plan. Security Forces and legal office personnel shall not serve as the program supervisor.

7.7.1. The plan should include the following:

7.7.1.1. Purpose and policy;

7.7.1.2. Rehabilitation programs and responsibilities of referral agencies;

7.7.1.3. Standardized procedures for in-processing;

7.7.1.4. Daily schedules;

7.7.1.5. Responsibilities of unit commanders, program supervisors and staff;

7.7.1.6. Training and work programs, including how much "extra" duty to permit;

7.7.1.7. Guidelines for supervising and treating entrants; and

7.7.1.8. Local procedures for secure storage, issue, accountability, and destruction of entrant medications. The program staff strictly controls medical supplies and medication, documents all medication issues and dispositions, and files completed records in an entrant's established folder.

7.7.2. The training and work plan may include military, physical or technical training, productive work or other duties. Program entrants may be assigned details. Develop procedures for returning entrants to their normal duty sections for parts of the day as soon as possible after entry into the program.

7.7.3. Installation commanders incorporate a physical training routine that complies with current physical fitness training guidance into the entrant's curriculum. Prior to entering the program, the member's unit ensures the host medical facility conducts a health assessment. The purpose of the assessment should focus on the entrant's fitness to complete program requirements.

7.7.4. Unit Commander's Progress Review. Commanders maintain command authority for assigned personnel in the program, regardless of location. If imposed, the commander or first sergeant reviews the progress of the entrant weekly. Commanders must get base referral agencies to evaluate and contribute to the correction process by making referral appointments for entrants. Commanders are responsible for providing escorts to required referral appointments. Commanders may mitigate, remit, or suspend punishment for the following reasons:

7.7.4.1. The entrant's behavior is believed to have been corrected;

7.7.4.2. Remotivational treatment is no longer appropriate; and/or

7.7.4.3. Administrative discharge actions have begun.

7.8. Staffing. The installation commander determines the size of the program staff and carefully screens and selects NCOs to make sure they are responsible, dependable, mature, and meet all quality indicators. Law enforcement personnel, such as Security Forces staff, and legal office personnel are not assigned as staff members and are not part of the program.

7.8.1. A panel consisting of a field grade officer, a chief master sergeant, and a first sergeant will be appointed by the installation commander to screen and recommend NCOs for remotivation staff duties. The installation commander may screen and detail additional staff from units with members assigned to the program when the staff temporarily needs them. Do not use corrections or confinement staff personnel to manage or staff a program facility. All NCOs appointed to the program staff retain their primary Air Force Specialty Code (AFSC) or Space Force Specialty Code (SFSC). The field grade officer serves as the program supervisor.

7.8.2. The program supervisor will:

7.8.2.1. Administer the program under the supervision of the installation commander and coordination with the installation's servicing SJA;

7.8.2.2. Oversee buildings and equipment;

7.8.2.3. Make sure correction is fair and effective;

7.8.2.4. Report any misconduct that may warrant disciplinary action to the responsible commander; and

7.8.2.5. Supervise entrants in the program area or assigned duties that are directly monitored.

7.8.3. The NCOIC of the program staff reports directly to program supervisor.

7.8.4. Prior to assigning members to the program staff, the installation commander must require each individual have proper CPR and other first-aid related training as determined by the medical group commander (MDG/CC).

7.8.5. The installation commander must have provisions established for when candidates of both sexes are present. This will include, at a minimum:

7.8.5.1. At least one male staff member physically present when there is a male candidate in correctional custody.

7.8.5.2. At least one female staff member physically present when there is a female candidate in correctional custody.

7.8.5.3. Separate sex restrooms and shower facilities.

7.8.5.4. Separate sex sleeping quarters.

7.8.6. Program staff will ensure entrants are not unnecessarily separated by sex and will take steps to ensure entrants otherwise progress through the remotivation program with members of the opposite sex.

7.9. Training and Work Programs. Allow entrants to train and work in their own units as they progress in the program. Each unit supervises entrants attached to it for training or work and designs duties so entrants meet performance standards in their AFSC or SFSC by the end of the program.

7.9.1. Supervisors of regional program facilities will designate work and training units for candidates, thus returning candidates to their AFSC or SFSC whenever possible.

7.9.2. Each facility uses offices such as base legal, a local professional military academy, and the Military Equal Opportunity office to educate entrants on professional military subjects.

7.10. Supervising Candidates. Supervise entrants at all times in the program area, and know where they are at other times. Program supervisors and staff will not carry weapons or use any form of personal restraints, such as handcuffs. Staff members must abide by the following standards when dealing with entrants:

7.10.1. Act in accordance with the requirements of Part V, MCM and this instruction. **(T-0).**

7.10.2. The following aspects of program staff member behavior require special emphasis and the program supervisor immediately reviews any violations:

7.10.2.1. Personal dignity of all individuals is observed and any act or work assignment that demeans, degrades, humiliates or serves only to embarrass an individual is expressly prohibited.

7.10.2.2. Physical abuse, hazing, bullying, use of unnecessary force, and any form of corporal punishment by staff is prohibited. The use of profanity by staff is prohibited. Striking a candidate is prohibited. Use of physical force upon candidates is prohibited except in self-defense, to prevent serious injury to others or the entrant, to prevent serious damage to property, to effect an authorized search, or to quell a disturbance. In such cases, the amount of force used is the least amount necessary to bring the situation under control.

7.10.2.3. Sexual harassment is prohibited. This behavior interferes with an individual's performance and creates an intimidating, hostile and offensive environment. Whether the individual is an entrant or staff member, sexual harassment denies the individual respect and dignity and is contrary to the mission of the facility. Organizational leaders and commanders, including civilian equivalents, will ensure the implementation of policies and procedures that prevent, detect, and appropriately address incidents of sexual harassment. Organizational leaders and commanders will also ensure that allegations of sexual harassment associated with DAF confinement facilities are expediently reported to AFOSI and or Security Forces for investigation.

7.11. Disciplining Candidates. The commander who imposes punishment also disciplines entrants who commit violations while in the program. The installation commander may empower the program supervisor to withdraw in-house privileges from entrants who commit minor violations. The program supervisor must establish disciplinary guidelines.

7.12. Clothing for Candidates. Program entrants must wear the prescribed uniform in the program area and in training or work programs. Do not use special or distinctive uniforms, armbands, or other devices to identify entrants.

CHRISTOPHER A. EASON
Major General, USAF
The Judge Advocate General

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

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10 U.S.C. § 802, *Persons subject to this chapter*

10 U.S.C. § 815, *Commanding officer's non-judicial punishment*10 U.S.C. § 822, *Who may convene general courts-martial*

10 U.S.C. § 823, *Who may convene special courts-martial*

10 U.S.C. § 824, *Special trial counsel*

10 U.S. C.§ 843, *Statute of limitations*

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18 U.S.C. § 922, *Unlawful acts*

28 C.F.R. Part 20, *Criminal Justice Information Systems*

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United States v. Moore, *32 M.J. 170 (CMA 1991)*

Prescribed Forms

DAF Form 3070A, *Record of Nonjudicial Punishment Proceedings (E-1 through E-5)*

DAF Form 3070B, *Record of Nonjudicial Punishment Proceedings (E-6 through E-9)*

DAF Form 3070C, *Record of Nonjudicial Punishment Proceedings (Officers)*

DAF Form 3070D, *Record of Nonjudicial Punishment Proceedings (E-6 through E-9) – Air National Guard Only*

DAF Form 366, *Record of Proceedings of Vacation of Suspended Nonjudicial Punishment*

DAF Form 3212, *Record of Supplementary Action under Article 15, UCMJ*

Adopted Forms

DAF Form 847, *Recommendation for Change of Product*

AF Form 1373, *MPO Document Control Log-Transmittal*

Abbreviations and Acronyms

AB—Airman Basic

ADCON—Administrative control

AF/A1M—Air Force Director of Manpower, Organization and Resources

AFCJIC—Air Force Criminal Justice Information Center

AF/JAJ—Military Justice and Discipline Directorate

FOA/JAJI—Investigations, Inquiries and Relief Division

FOA/JAJM—Military Justice Law and Policy Division

AFDW—Air Force District of Washington

AFI—Air Force Instruction

AFMAN—Air Force Manual

AFO—Accounting and Finance Office

AFRC—Air Force Reserve Command

ANG—Air National Guard

CC—Commander

CDI—Commander Directed Investigation

CFC—Combat Forces Command

CMA—Court of Military Appeals

CSAF—Chief of Staff of the Air Force

CSO—Chief of Space Operations, United States Space Force

DAF—Department of the Air Force

DAFI—Department of the Air Force Instruction

DCMS-AMJAMS—Disciplinary Case Management System-Automated Military Justice Analysis and Management System

DNA—Deoxyribonucleic Acid

DoD—Department of Defense

DoDI—Department of Defense Instruction

DOR—Date of Rank

FBI—Federal Bureau of Investigation

FLDCOM—Field Command

GCMCA—General Court-Martial Convening Authority

IG—Inspector General

MAJCOM—Major Command

MDG/CC—Medical Group Commander

MCM—Manual for Courts-Martial

MPF—Military Personnel Flight

MSS—Mission Support Squadron

NCOIC—Non-Commissioned Officer in Charge

NICS—National Instant Criminal Background Check System

NGB—National Guard Bureau

NGB-GC—National Guard Bureau, Office of the General Counsel

NJP—Nonjudicial Punishment

OPR—Office of Primary Responsibility

OSI—Office of Special Investigation

OSTC—Office of Special Trial Counsel

OSI/XI—Office of Special Investigation Warfighting Integration Directorate

PII—Personally Identifiable Information

R.C.M.—Rule for Courts-Martial

RDS—Records Disposition Schedule

RIP—Report on Individual Personnel

ROI—Report of Investigation

SAF/IGS—Secretary of the Air Force, Inspector General, Senior Official Inquiries Directorate

SAFO—Senior Air Force Officer

SECAF—Secretary of the Air Force

SFAS-NSD—Space Force Active Status not on sustained duty

SFS—Security Forces Squadron

SFS/S2I—Security Forces Squadron Investigations Section

SJA—Staff Judge Advocate

SNCO—Senior Non-Commissioned Officer

SSFO—Senior Space Force Officer

TDY—Temporary Duty

UCMJ—Uniform Code of Military Justice

UIF—Unfavorable Information File

USACIL—U.S. Army Criminal Investigative Laboratory

USAFA—United States Air Force Academy

U.S.C.—United States Code

UTA—Unit Training Assembly

VCSAF—Vice Chief of Staff of the Air Force

VCSO—Vice Chief of Space Operations, United States Space Force

Terms

Activity Outside the Department of the Air Force—An organization or agency to which DAF members are assigned or attached that is not part of the Air Force or Space Force. They include, but are not limited to, Defense Agencies, DoD field activities, and consolidated units, such as consolidated flying units. While joint and combined organizations are not part of the Air Force or Space Force, they are not considered "activities outside the Department of the Air Force" for the purpose of this instruction.

Air Force Unit—A named or numbered military organization constituted by directives issued by HQ USAF. Air Force units include major commands, numbered air forces, wings, groups, squadrons, centers, direct reporting units, field operating agencies, and provisional units. See DAFI 38-101. They also include deployable units formed from air expeditionary forces, such as air expeditionary wings, groups or squadrons that are attached to an Air and Space Expeditionary Task Force or an in-place Numbered Air Force that has been directed by a MAJCOM to support a joint force commander.

Commander—A commissioned officer who has assumed or been appointed to command of an Air Force or Space Force organization in accordance with DAFI 51-509.

Covered Offenses—UCMJ offenses on which OSTC has exclusive, initial disposition authority. These offenses are prescribed by Article 1(17), UCMJ.

Extended Active Duty—A tour of Title 10 active duty, other than active duty for training or temporary tours of active duty, performed by a member of an Air Force Reserve component that is normally for a duration in excess of 90 days. Strength accountability for persons on extended active duty changes from Air Reserve Component to the active force.

General Court-Martial Convening Authority—Convening authority authorized to convene general courts-martial. See Article 22, UCMJ.

Installation—As used in this instruction, installation refers to DAF property under the control and orders of a commander.

Joint Force—A joint force is composed of significant elements, assigned or attached, of two or more Military Departments operating under a single commander authorized to exercise operational control over the force to accomplish an assigned mission. Joint forces are established at unified commands, specified commands, subordinate unified commands, and joint task forces. Joint forces organizationally consist of a joint force commander, a joint staff organization, and Service component commands. See Joint Publication 1, *Doctrine for the Armed Forces of the United States*.

Next Superior Authority—For purposes of NJP under Article 15, UCMJ, the next superior authority is generally the immediate DAF commander superior to the officer who imposed the punishment. The next superior authority must be superior or equal in grade to the commander who imposed punishment. See DAFPD 51-2.

Officer—A commissioned officer, warrant officer, or United States Air Force Academy cadet.

Principal Assistant—The commander's principal assistant is the officer who would assume command in the event of the commander's death, prolonged absence, or disability, or the vice or deputy commander of the organization. However, if that officer is located at another station, the commander may delegate authority to the officer on the commander's station who is next eligible to assume command. Principal assistants must be military officers to exercise NJP authority and may impose only the amount of punishment authorized for their grades. See DAFPD 51-2.

Space Force Active Status-Not on Sustained Duty—Defined in SPFGM2025-36-02, Space Force Memorandum for Implementation of Guardians on Sustained Duty and Not on Sustained Duty in the United States Space Force, 31 July 2025

Space Force Unit—Space Force units include field commands (which includes Component Field Commands), deltas, squadrons, centers, direct reporting units, field operating agencies, and provisional units. See DAFI 38-101. They also include deployable units or employed-in-place units that are assigned or attached to Air and Space Expeditionary Task Force that has been directed by a competent authority to support a joint force commander.

Special Court-Martial Convening Authority—Convening authority authorized to convene special courts-martial. See Article 23, UCMJ.

Warrant Officer—A Warrant Officer in the grade of W-1 to W-5.